

FINAL REPORT FOR PHASE II OF AUTOMATION & DIGITIZATION OF OAG & DOJ (Automation of Workflows)

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ABBREVIATIONS

AIE	
Authority to Incur Expenditure	92
ARG	
Assistant Registrar General	50
BRS	
Business Registration Services	28
DOJ	
Department of Justice . 1, 11, 12, 13, 14, 15, 16, 17, 18, 19, 21, 26, 27, 28, 30, 31, 33, 36, 49, 51, 70, 73, 76, 79, 82, 85, 86, 89, 92	
DR	
Charging data Record	24
DRG	
Deputy Registrar General	50
DVD	
Digital Versatile disc	25
EDR	
Electronic Document Record	24
EDRMS	
Electronic Document and Records Management System	13, 21, 22, 23, 24, 25, 26, 27
Elc	
Environment and Land Court	92
Elrc	
Employment and Labour Relations Court	92
GHz	
Gigahertz	27
GIZ	
The Deutsche Gesellschaft für Internationale Zusammenarbeit GmbH	11, 15, 18, 35, 36
HOD	
Head of Department	50, 51, 70, 73, 76, 79, 82, 85, 86, 89, 92, 114, 115, 116, 133, 134, 135
HTML	
HyperText Markup Language	24
ICT	
Information and Communication Technology	2, 13, 16, 18, 19, 21, 26, 28, 36
IFMIS	
Integrated Financial Management and Information System	134
ISO	
International Organization for Standardization	50, 51, 69, 70, 72, 73, 76, 78, 79, 82, 84, 85, 86, 89
IT	
Information technology	31
LAN	
Local Area Network	16, 28
LC	

Litigation Counsel.....	92, 97, 104, 107, 108, 111, 112, 114, 115, 118, 119, 122, 123, 124, 126, 127, 128, 129, 130, 131, 132, 133, 136, 137, 138
Mbps	
Megabytes per Second.....	26, 27
MTP	
Medium term plan	14
OAG	
Office of the Attorney General	1, 11, 12, 13, 14, 15, 16, 17, 18, 19, 21, 26, 27, 28, 30, 31, 33, 36, 46, 49, 51, 70, 73, 76, 79, 82, 85, 86, 89, 92, 134
OCM	
Organizational Change Management.....	30, 31
OCR	
Optical Character recognition	25
PDF	
Portable document format	24
RAM	
Random access memory	27
RG	
Registrar General	50
RM	
Registrar of Marriage	52, 58
ROMs	
Read Only Memory	25
SC	
Senior Counsel...	92, 97, 104, 107, 108, 111, 112, 114, 115, 118, 119, 122, 123, 124, 126, 127, 128, 129, 130, 131, 132, 133, 136, 137, 138
SDGs	
Sustainable Development Goals	15
SDRG	
Senior Deputy Registrar General.....	50
SG	
Solicitor General.....	92, 115, 116
SHRM	
Society for Human Resource Management	30
SOP	
Standard Operating Procedure	49, 50, 92
SQL	
Structured Query Language	26
TB	
Terabyte	18, 21
TCO	
Total Cost of Ownership.....	26
ToRs	
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UAT	
User Acceptance Testing.....	26
VPN	
Virtual Private Network.....	27

WAN

Wide area Network 13, 17, 27

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1.EXECUTIVE SUMMARY

The Office of the Attorney General and Department of Justice (OAG & DOJ) is mandated to promote the rule of law and public participation; support Government's investment in socio-economic development; promote transparency, accountability, ethics, and integrity; spearhead policy, legal and institutional reforms; promote economic governance and empowerment; promotion, fulfillment, and protection of human rights; and enhance access to justice.

On its part, Deutsche Gesellschaft für Internationale Zusammenarbeit (GIZ) GmbH, runs the Strengthening of Good Governance Programme focused on supporting public sector institutions to lay the foundations for less corrupt, fairer, and more efficient public service. Part of this includes using digital systems to enhance transparency in public procurement (e-procurement), complaints management, and improve data for governance.

The OAG & DOJ in realizing modernization and innovation as a key strategic objective partnered with GIZ Kenya to conduct a pilot project for the automation and digitization of two key departments, that is, the Civil Litigation Department and the Registrar of Marriages. The Civil Litigation Department is responsible for providing legal advice to Government ministries, departments, and agencies in all civil and Constitutional matters, conducting arbitrations, representing the national government in all civil and Constitutional proceedings, representing county governments in civil matters when such representation is sought, facilitating the resolution of civil claims, and taking up public interest litigation.

The Civil Litigation Department is involved in defence of cases against the Government with a potential liability of exposure worth billions of shillings of public funds. For instance, as of May 2018 the quantifiable monetary claims with a potential liability exposure to the Government stood at Kshs. 809,938,412,174.83.¹ By the Year 2022 the Value of Legal Suits against the State had risen

¹ 'Civil Litigation Services, Statistics of Cases Won' <<https://statelaw.go.ke/government-services/civil-litigation/statistics-of-cases-won/>> accessed 3 March 2022.

to Ksh. 1.2Trillion shillings.² This provides the greatest impetus to the provision of an efficient system to aid State counsel in the defence of Government of Kenya and insulate the Kenyan public from the potential colossal loss of funds.

On the other hand, the Registrar of Marriages is responsible for licensing and gazetting of marriages, church ministers to perform marriages, and adoptions of children. The Registrar of Marriages through licensing and gazetting of marriages helps ensure the property rights of divorcees, widows, and orphans by recognizing them as official dependents. Kenya is a patriarchal society and once the man dies or divorces then often times divorcees widows, and orphans are irregularly and corruptly deprived of their rights to his property on the basis that they were not the deceased's official family.³ On average currently the Registrar of Marriages at the Headquarters serves on average a total of 200 clients per day with the current manual system. Digitization of this department will aid in efficient service delivery to Kenyan public with the potential to quadruple the number of clients served per day once the digitized system is in place.

Digitization of these two departments is crucial in ensuring effective delivery of services in accordance with the principles of good governance, transparency and accountability. The said OAG & DOJ departments are located in the Nairobi Central Business District and also in twelve regions across the country.

The two departments carried out documentation of their processes and the same was confirmed at each regional office. Civil Litigation identified and documented 16 processes while Registrar of Marriages documented 13 processes. It was noted that the OAG & DOJ would be best served by an Electronic Document and Records Management System (EDRMS) that combines document management and records management functions. Digitization of the registries would be at the headquarters. The OAG & DOJ in its contribution towards the successful implementation of the

² Total value of Legal suits based on Parliamentary committee on Justice and Legal affairs
<https://www.businessdailyafrica.com/bd/economy/value-of-legal-suits-against-state-rises-to-sh1-2-trillion-3723542/>>

³ 'Once You Get Out You Lose Everything: Women and Matrimonial Property Rights in Kenya'
<<https://www.hrw.org/report/2020/06/25/once-you-get-out-you-lose-everything/women-and-matrimonial-property-rights-kenya>> accessed 3 March 2022.

project, is expected to ensure the requisite infrastructure is in place including servers, adequate internet connectivity, WAN connectivity and suitable computers.

Project management was identified as crucial to ensure the successful development and deployment of the system. The Agile Methodology, which is cyclic and embraces unit testing was identified as the ideal for OAG & DOJ. Change management, a key ingredient of ensuring acceptability of the project by the organization, was recommended to be carried out and indeed noted to be part of the features of the Agile Methodology.

A risk management plan is a must for any project and the planned automation and digitization of the two departments is not an exception. Key risks identified and their mitigation strategies once implemented will ease technology adoption and roll-out. Adequate training of the ICT staff and organizational problems such as unavailability of key staff due to staff resistance are counteracted by proper project planning and communication.

2.BACKGROUND

Article 156 of the Constitution of Kenya 2010 and the Office of the Attorney General Act 2012 set out the Constitutional mandate and functions of the Attorney General. The Attorney General is the Government principal legal advisor, responsible for representing the National Government in court or any other legal proceedings to which the National Government is a party (other than criminal proceedings) and for performing any other functions conferred to the Office by an Act of Parliament or by the President. The Attorney General is also the promoter of the rule of law and defender of the public interest.

Pursuant to Executive Order No.2 of 2013, the Attorney General now discharges the functions of a Cabinet Secretary in relation to the Department of Justice and therefore, has responsibility for the promotion of human rights and implementation of the Constitution, access to justice including through promotion of legal aid, good governance, anti-corruption strategies, ethics and integrity, legal education and law reform, among others. The Attorney General also provides policy, co-ordination and oversight with regard to various legal sector institutions and therefore has a broader cross-cutting mandate to support the strengthening of legal sector institutions.

The OAG & DOJ is a critical actor in the realization of the social, economic and political pillars of the aspirations of the Government and the Kenyan people under Vision 2030 as well as other national development priorities. It is for this reason that the OAG & DOJ aligned its Strategic Plan 2018/19-2022/23 to the Vision 2030, particularly to the Third Medium Term Plan (MTP III) of the Vision 2030 and the Government's Big Four Agenda. The Strategic Plan also resonates with the United Nation's Sustainable Development Goals, the African Union's Agenda 2063 as well as other regional and international development goals. In the Plan period, the OAG & DOJ will undergo institutional reforms to improve efficiency and optimal use of resources. Specific priorities have also been formulated for moving the OAG & DOJ towards necessary change and modernization.

The OAG & DOJ in its role contributing towards the National Agenda has identified the improvement of business processes in the provision of legal services as a key deliverable. This will entail the digitization of legal records and development of an online knowledge management system; establishment of a legal resource centre; strengthening international co-operation; and

strengthening the technical capacity of Government legal services.⁴ The OAG & DOJ aims to continue automating its services to enable accessibility by a wider audience without necessarily having to physically visit the offices.

PARTNERSHIP WITH DEUTSCHE GESELLSCHAFT FÜR INTERNATIONALE ZUSAMMENARBEIT (GIZ) GMBH GIZ:

The OAG & DOJ mandate areas fall within the purview of several international development partners' priority programmes more so the continued implementation of Constitutional and legal reforms and SDGs. GIZ, a key partner, collaborates with the OAG & DOJ through the **Strengthening Good Governance Programme**. A key objective of the programme is to improve public service delivery in the justice sector in line with the principles of good governance and in accordance with the Sustainable Development Goals of the 2030 Agenda. It is working on improving the management of public complaints and the transferal of state functions to the local level, above all by boosting local authorities' abilities to comply with the rules of transparency and accountability.⁵ Automation and Digitization of the OAG & DOJ would not only increase efficiency and accountability, it would allow the decentralization of services as members of the public would be able to access services without travelling to the physical offices.

Under the auspices of this programme, GIZ and OAG & DOJ commissioned a needs assessment to be undertaken to determine key priorities in automation and digitization.⁶ Key findings of the analysis were: -

1. 84% of the OAG & DOJ systems in place consisted of Hybrid systems. A Hybrid system consists of users working on both a digital system (mostly email) and hard copy documents. The fact that users already interact with an electronic system is a positive development as it bodes well for Automation & Digitization. Additionally, the continual use of hard copy documents necessitates the need to digitize records to fully achieve the full benefits of Automation.

⁴ Key Result Area Number 4: General Administration, Planning and Support Services: Strategic Objective 8: To improve performance management and operations: Strategy Six - service delivery automation.

⁵ Strengthening Good Governance <<https://www.giz.de/en/worldwide/24981.html>> accessed 3rd March 2022

⁶ Needs Assessment on Automation and Digitization of OAG & DOJ 2020/21

2. All Departments and Regional Offices have Local Area Networks (LAN) in place. This means computers are interconnected via Wireless or Cable connection. LANs are a critical infrastructure for Automation & Digitization since access/sharing/review of files is done over this network. The existence of this in the OAG & DOJ bodes well for Automation & Digitization.
3. The OAG & DOJ generates approximately 6,200 pages of hard copy records on a daily basis. The Registrar of Marriages, Registrar of Societies, Legal Advisory & Research, Admin Planning & Central Records Management and Public Trustee generate 80% of these files. These 5 departments consist of the critical departments requiring digitization of their records.
4. All departments and regional offices have internet connectivity, with regional offices having fibre optic internet access. Internet connectivity is a key factor in any Automation & Digitization programme and the existence of this connectivity is key positive finding. Further, fibre optic Internet is one of the most robust and scalable technology, having physical infrastructure in place is a key incentive for a successful Automation & Digitization programme.
5. Though the Regional Offices have reliable internet connections, it is imperative to ensure that they maintain adequate bandwidth (internet speed), to allow multiple streaming of e-meetings and the use of an electronic document management system, a key component of Digitization.
6. Only ICT Department in Headquarters and Garissa regional office, have fit for purpose devices and in proper working condition. Devices consist of Laptops, Desktops, printers and scanners that will form part of the needed infrastructure to successfully implement Automation & Digitization. Fit for purpose devices means computers, laptops, printers and scanners have specifications that would match the equipment needed to automate and digitize the department. The remaining departments need to upgrade their devices to ensure they are fit for purpose for this exercise.
7. Collaboration between the Headquarters and Regional Offices is done mostly through email communication, WhatsApp messages and text messages. However, the four departments that have regional offices mostly send official documents/work product that mostly consist of physical files manually through registered post. To fully Automate the OAG & DOJ, there is need to provide for Wide Area Network (WAN) between Headquarters and Regional Offices; thus providing the connectivity between the regions and head office. With this in place, an

electronic document management system can be implemented and eliminate the use of hard copies and therefore fully automate OAG & DOJ.

8. Digitization and Automation is well received in the different departments, with all departments identifying areas in their department that require digitizing and specific needs automation will address. The positive feedback received proved that staff are ready and willing to take up automation & digitization and are eager for the project roll-out. Staff adoption of automation & digitization is a key factor in determining the success of this programme.
9. There is inadequate space for filing records at most of the registries in the organization including Headquarters. These further leads credence to the need to digitize records therefore freeing up space taken up by physical files.
10. Even though a few departments indicated that they have an archival policy, archival is done as a matter of practice and not policy. Indeed, there is no record management policy which would identify the different types of documents within the organization, determine how they are handled including archiving and disposal, if need be, of the same.
11. Lack of standardization of recordkeeping at the regions is clear and evident by the different state of registries across the region. This may be exacerbated by the absence of staff training and standard operating procedures on site.
12. Proliferation of clutter at most of the registries in the regions. Old tyres, typewriters & unserviceable electronics compete for storage space with hard copy documents therefore hindering document tracing and compromising integrity of the documents. Disposal of the broken-down items should be done as a matter of urgency.
13. ICT Department has a 30TB(Terabyte) Network Storage, this more than sufficient to digitize all records in the OAG & DOJ bearing in mind Marriages department has majority of these records at circa 1.6million files.⁷

Following the above findings, it was decided by OAG & DOJ and GIZ to undertake a pilot automation and digitization exercise at the Registrar Generals- Registrar for Marriages and Civil Litigation Departments. Therefore, there was need to have a preparatory phase to ensure the two

⁷ Standard best practice is on average 8TB of storage space is required to store 20million records both in color and black & white.

departments are ready for the same. The following were the key outcomes that were anticipated at the end of this phase of the programme:

- A clear roadmap for digitization & automation of Civil Registration and Registrar of Marriages departments at the headquarters and regional offices.
- Standardized workflows for Civil Registration and Registrar of Marriages departments at the headquarters and regional offices.
- Standardized draft record management manuals for Civil Registration and Registrar of Marriages departments at the headquarters and regional offices.
- Identified Key staff at headquarters and regional offices to aid in the final automation & digitization programme for these two departments.
- Detailed key risks that may impair the successful implementation of the Automation & Digitization programme and provide for mitigations for these risks.

The mode of engagement for this face of the programme focused on meetings with key staff from the two departments and also with Executive Leadership of the OAG & DOJ for the successful rollout of the programme.

2. PROGRAMME DELIVERY TIMELINES

This phase of the Automation and Digitization drive was to be undertaken over a total of 47 days (inclusive of 15 travel days) as detailed in the Terms of Reference under ANNEX II.

The Consultants at the start of the programme undertook meetings with Executive Team of the OAG & DOJ with the following key focus:

1. Provide the framework and justification for this phase of automation and digitization.
2. Identification of Key staff members that will act as the Project Lead for efficient delivery of this programme.

Further to the meeting with Executive Team, the Consultants had meetings with Departmental Heads together with teams in the Registrar of Marriages, Registrar of Societies, ICT, Records

Management and Civil Litigation Departments that were targeted for digitization of their workflows. The outcome of these meeting was the following:

1. Working teams from Registrar of Marriages, Civil Litigation, Registrar of Societies, ICT and Record Management who worked with the Consultants to undertake a detailed overview of the workflow processes in each of these departments.
2. The Consultants were to help the different departmental teams in finalizing a standardized workflow process for each of the departments, with the department signing off on the agreed standardized workflows.
3. The Consultants together with the ICT team were to undertake an infrastructure assessment and readiness to support the envisioned digitized system for the OAG & DOJ.

The project delivery timelines were overrun as the project was due to be completed by January 31st 2022. Delays were as a result of critical staff taking their annual leave in December and non - availability of committee members on consecutive days.

3. METHODOLOGY

The Consultants together with Departmental heads of the Registrar of Marriages, Registrar of Societies and Civil Legislation formed working groups in each of these departments. The Consultants acting as the Leads for this groups undertook detailed review of the workflows for each of these departments.

Furthermore, the Consultant visited the Regional Offices to present the agreed workflows with the teams in the Regional Offices.

4. KEY OUTCOMES

4.1 REGISTRAR OF MARRIAGES:

The Consultants obtained Standard Operating Procedures for this department and subjected them to validation by the working group in this department both at the Head Office and Regional Offices. Staff reviewed a total of 13 processes and standardized the workflows for each of these processes. Sign off for the process was obtained with the agreed Workflows annexed as part of this report (ANNEX I).

4.2 CIVIL LITIGATION DEPARTMENT:

The Consultants obtained Standard Operating Procedures for this department and subjected them to validation by the working group in this department. Staff reviewed a total of 16 processes and standardized the workflows for each of these processes. Sign off for the process was obtained with the agreed Workflows annexed as part of this report (ANNEX III).

4.3 RECORD MANAGEMENT OFFICE:

Document handling procedures were incorporated within the workflows for each department. Registry staff members within each Department were represented in the committees and participated. Further, the OAG & DOJ have set up a committee to develop a Records Management Policy and have embarked on the process.

4.4 ICT DEPARTMENT:

The Consultants shared a hardware sizing questionnaire which was reviewed with the ICT department working group. This document helped establish the current ICT infrastructure readiness to support the envisioned digitized working environment for the two departments.

The following are the key outcomes on the status of the ICT Infrastructure:

1. Inconsistent internet availability- Some of the stations did not have internet connectivity when the consultants visited the stations.

2. Insufficient internet bandwidth. Some regions stated that the bandwidth available at the regions was minimal and shared with other Government Departments with high levels of downtime.
3. Wide Area Network is yet to be rolled out to the regions.
4. Staff in the regions still complain that their computers do not meet the minimum requirement for the staff to optimally.
5. Network storage of 30 TB is still available for use.
6. The servers in use currently do not meet the minimum specification to support the envisioned digitized workspace.

4.4.1 PROPOSED SOLUTION:

The envisioned digitized workspace for the Marriages and Civil Litigation department entails the implementation of a software solution (EDRMS) and upgrading of the existing hardware infrastructure to support the EDRMS.

4.4.1.1 SOFTWARE:

An Electronic Document and Records Management System (EDRMS) would be the ideal solution to automate the business processes of the two Departments. An EDRMS combines document management and records management functionality. It enables organisations to manage unstructured information captured in paper and electronic formats, such as emails, word processed and spreadsheet contents. This provides EDRMS electronic repositories that enable organisations to register, capture, store, use, search, retrieve, modify, maintain, dispose, and archive corporate documents and records in electronic formats. EDRMS have functionality that enables the management of the lifecycle of paper documents and records using a database approach to recording the physical location and content description of paper information. The document management functionalities of check-in, check-out and version control in the EDRMS enable organisations to modify, track changes and have an automated audit trail of their official

documents and records. These functionalities generally support the short to medium term information requirements of organisations.

4.4.1.1.1 KEY FUNCTIONALITIES OF THE PROPOSED SOLUTION

Functionality	Purpose	Applications used
Document capture and registration	Enables central storage of documents and records in one single corporate information repository	Integration with Microsoft's Word, Excel, PowerPoint and Outlook.
Viewing	View documents and records using either the EDRMS' inbuilt viewing tool or in the native application of the document or record.	Microsoft's Word, Excel, PowerPoint, Project and Outlook, Adobe Acrobat
Check-in and check-out	Edit documents and records and then return an updated version into the EDRMS.	Integration with Microsoft's Word, Excel, PowerPoint and Outlook

	While the document and record are checked-out, a lock placed on the document and record preventing edits by other users	
Declare record	Declare a document as a 'record' so that it is frozen in the EDRMS as a final record to prevent further editing.	Any application
Functionality	Purpose	Applications used
Version control	Automatically tracks the version and revision history of the document. Allows authorized users to view previous versions or revisions of documents	Any application
Auditing	Keep an audit trail of actions that happen to documents and records	Any application
Renditions of EDRs	Maintain multiple renditions of the same document. For example, a version of a word-processing document created using Microsoft's Word may be saved in HTML or PDF format for publishing, review and approval	Any application

Workflow Module	Manage the flow of work in an organization. It can, for example, be configured to process and approve an incoming invoice by scanning the invoice and routing it through the invoice approval workflow by relevant staff	Workflow module is an add-on to the EDRMS
Functionality	Purpose	Applications used
Scanning Module	Scanning software is used to capture incoming correspondence or to convert paper documents or records into electronic content Optical Character Recognition (OCR) software is used to turn a picture of words such as scanned or typed letter into an editable document, allowing indexing the text contents of EDRs and so searching contents using the full text search mechanism of the EDRMS	Scanning module is an add-on to the EDRMS OCR software
Managing physical records	Manage the physical location of documents and records in the form of paper files, CD-	Another add-on module to the EDRMS

	ROMs, DVDs, reports and archive boxes, and their storage locations, including record registries, filing cabinets, offsite commercial storage locations, and archival repositories	
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A bespoke solution whose source code is owned by the OAG & DOJ would be preferable as it offers the lowest Total Cost of Ownership (TCO). Bearing in mind that OAG & DOJ has a highly skilled ICT department, this department will offer first level support for the first year with eventual maintenance and support being fully handed over to the department thereafter.

4.4.1.2 INFRASTRUCTURE REQUIREMENTS

To support the EDRMS system described in the preceding chapter, the following Infrastructure is required for optimal use of the EDRMS:

1. **SERVERS**: Servers will act as the central repository where all digitized records are stored and accessed by the different departments. It is recommended that 3 Servers be provided. These will be used for the UAT (User Acceptance Test) and final production platform that will be used. The following are the minimum specifications:
 - a. **INDEX SERVER**: Quadcore Intel Xeon E5 -2676 v3, Red Hat Enterprise Linux 8.4 x64/Red Hat Enterprise Linux 8.2 x64/Windows Server 2019/Amazon Linux/CentOS 7.9 x64/CentOS 8.3 x64/Ubuntu 20.04/Ubuntu 18.04, Tomcat 9, 300GB Hard Disk Drive.
 - b. **DATABASE SERVER**: Quadcore Intel Xeon E5 -2676 v3, Red Hat Enterprise Linux 8.4 x64/Red Hat Enterprise Linux 8.2 x64/Windows Server 2019/Amazon Linux/CentOS 7.9 x64/CentOS 8.3 x64/Ubuntu 20.04/Ubuntu 18.04, MySQL

8/MySQL 5.7.23/MS SQL Server 2019/MS SQL Server 2017/Oracle 12c/Oracle 19c/PostgreSQL 13.3/PostgreSQL 12.7/PostgreSQL 12.4/PostgreSQL 11.12/MariaDB 10.6/MariaDB 10.5/MariaDB 10.4/Amazon Aurora, 4TB Hard Disk Drive.

- c. **CONTENT STORE**: Red Hat Enterprise Linux 8.4 x64/Red Hat Enterprise Linux 8.2 x64/Windows Server 2019/Amazon Linux/CentOS 7.9 x64/CentOS 8.3 x64/Ubuntu 20.04/Ubuntu 18.04, Minimum 4TB Hard Disk Drive.
2. **INTERNET**: For efficient utilization of the EDRMS, there is need for a fast and reliable internet connectivity. We recommend a Fibre Optic Internet link of not less than 20 Mbps (Downlink) and 10 Mbps (Uplink). A redundant link of the same capacity to function as a back-up link at the Headquarters for business continuity. For the regional offices we recommend Internet connection of not less than 10 Mbps (Downlink) and 5 Mbps (Uplink).
3. **WIDE AREA NETWORK**: It is envisioned that the EDRMS will be rolled out to the regional offices. It is therefore an imperative to have a Wide Area Network deployed prior to this. The Routers and switches used for configuration of the WAN should be VPN Capable to ensure that different regions can share documents, access central data repository in the Headquarters in a fast & secure environment.
4. **DISASTER RECOVERY**: For best practice, the proposed solution should have a secondary location that functions as an offsite back-up site. In case the Headquarter is affected by critical failure or downtime, this secondary site can ensure business continuity. Konza Technopolis is an Ideal site for this.
5. **COMPUTERS**: It is recommended that all staff in the two departments have computers with the following minimum specifications 2.2 GHz Core i3 or above processor, 8GB RAM, 500GB Hard disk drive, Windows 8, Browser (Firefox, Chrome, Microsoft Edge).

4.5 DIGITIZATION OF RECORDS AT HEADQUARTERS:

As previously noted in the Needs Assessment on Automation and Digitization Report on the OAG & DOJ, storage space for physical files is a huge challenge both at the Headquarters and most of the regional offices. The two departments have their files both at the Headquarters and the regional offices with the Registrar of Marriages having additional documents at the deputy county commissioner's premises.

The scope of this phase limits the digitization of these files to the Headquarter. For the Registrar of Marriages, documents are in form of bound booklets and files located mostly on ground floor and second floor. Regarding Civil Litigation, documents are in the form of folioed files with some however having bound documents within them and are located on the seventh floor and eight floor.

4.5.1 PROPOSED METHODOLOGY.

The following is the proposed methodology for the digitizing records at the Headquarters:

- a) Contractor scoping of the registry and documents with guidance of the project manager OAG & DOJ
- b) Come up with a project implementation plan
- c) Agree on indexing fields (not more than five)
- d) Dedicated staff in each registry recording files to be scanned and received files that are scanned. This allows for audit and traceability
- e) Staff to train the digitization crew on types of documents
- f) A central scanning station ideally located at the Business Registration Service Hall, ground floor.

4.5.2 RESOURCES REQUIRED.

The following resources are required to undertake the digitization of records at the Headquarters:

- Scanning site, five thousand square feet (5000 sq ft)- BRS hall on ground floor is ideal.
- Tables for digitization crew- 20
- Chairs for digitization crew- 80
- Power outlets at the scanning site
- LAN for uploading images
- Storage space for the electronic records. ICT Department has 30TB Network Storage that would suffice for this.

With every iteration, new features are added to the product, resulting in gradual project growth. With the features being validated early in the development, the chances of delivering a potentially failed product are significantly lower.

The Agile approach should be utilized in managing this project where demands and solutions evolve through the collaborative effort of self-organizing and cross-functional teams consisting of end users, implementing firm's developers and the project manager.

Agile methodology begins with OAG & DOJ describing how the end product will be used and what problem it will solve. This clarifies their expectations for the implementing firm. Once the work begins, teams' cycle through a process of planning, executing, and evaluating – which might just change the final deliverable to fit OAG & DOJ's needs better. Continuous collaboration is key, both among team members and with project stakeholders, to make fully-informed decisions.

In summary, the main aspects of this methodology are:

1. **Flexibility:** The scope of work may change according to new requirements.
2. **Work breakdown:** The project consists of small cycles (known as Sprints in Scrum).
3. **Value of teamwork:** The team members work closely together and have a clear vision of their responsibilities.
4. **Iterative improvements:** There is frequent reassessment of the work done within a cycle to make the final product better.
5. **Cooperation with a client:** The client is closely engaged in the development and can change the requirements or accept the team's suggestions.

4.7 CHANGE MANAGEMENT

Without effective change management to transform an organization's operating model and equip

users to be successful with a new technology, the desired value of the future state will be difficult to achieve. A survey conducted by the American Society for Human Resource Management (SHRM) revealed that employee resistance (76%) to change is in fact one of the top reasons transformation efforts—like the ones underpinning system implementation—fail.

Organizational Change Management (OCM) practitioners apply a people-focused structure to business transitions to increase the likelihood that a transformation's anticipated value is fully realized. Focusing on a path toward user adoption, OCM systematically addresses stakeholder discomfort with cultural, business, social, or other non-technical changes related to software implementation. This approach is compatible with the Agile methodology where collaboration and adaptation happen daily.

Because of the iterative nature of Agile methodology and the level of churn this creates for users, the need for change management doesn't go away but rather shifts in its nature and cadence – from a progressive, growing crescendo of significant interventions to brief, repeated interjections for a cyclical rhythm of software releases. Some unique challenges present themselves as a result. We recommend incorporating change management into the OAG & DOJ Agile project using the following guiding principles:

- ⇒ **Start change management activities early in the project.** While change management should be incorporated into every system implementation project plan from the earliest stages, it is particularly important to do so in an Agile environment where the lead time for change preparation is brief.
- ⇒ **Integrate change management into the project management methodology.** Regardless of the project methodology, project managers in general are tasked with planning, preparation and risk assessment. Bearing in mind that employee resistance is a significant factor in IT project failure, organizational readiness should be tied into the project management strategy and assessed continually like any other risk.
- ⇒ **Make change management cyclical.** Change management in a Waterfall

environment typically focuses on preparing for organizational readiness at a fixed endpoint (go-live). Change management in an Agile framework needs to equip users for a regular rhythm of changes over time, while also staying attuned to the overarching goals and business drivers associated with the product's long-term strategy.

- ⇒ **Make change management flexible and agile.** Change practitioners in an Agile project must be creative and able to think on their feet; gauging how, when, and where to focus their efforts to achieve greatest user impact. Monitoring the effectiveness of change management through regular surveys or other user touch points becomes absolutely critical in an Agile environment as well so that the team can continuously refine and improve organizational readiness tactics.

4.8 RISK MANAGEMENT:

The success of a software development project depends quite heavily on the amount of risk that corresponds to each project activity. To achieve a successful outcome, project leadership must identify, assess, prioritize, and manage all of the major risks. The development of a risk management plan is essential.

Some of the key risks associated with this project are:

1. **Technological changes:** Ever-changing tools, techniques, protocols, standards, and development systems increase the probability that technology risks will arise in virtually any substantial software engineering effort. Training and knowledge are of critical importance, and the improper use of new technology most often leads directly to project failure.

Mitigation: Constant training and knowledge management in key technologies.

Proper manuals and documentation are mandatory in the software development.

2. **User and functional requirements.** Software requirements capture all user needs with respect to the software system features, functions, and quality of service. Too often, the process of requirements definition is lengthy, tedious, and complex. Moreover, requirements usually change with discovery, prototyping, and integration activities. Change in elemental

requirements will likely propagate throughout the entire project, and modifications to user requirements might not translate to functional requirements. These disruptions often lead to one or more critical failures of a poorly-planned software development project.

Mitigation: Adaption of the agile methodology ensures that each testing is cyclic and the development of the software is unit or module based, ensuring that further development is curtailed unless user is satisfied. Further, the Departments have documented the work flows through collaboration and sought concurrence from the across the entire office.

3. **Performance.** It's important to ensure that any risk management plan encompasses user and partner expectations on performance. Consideration must be given to benchmarks and threshold testing throughout the project to ensure that the work products are moving in the right direction.

Mitigation: Development of a project plan that includes timelines and expectations from both the OAG & DOJ and the implementing firm will ensure accountability and monitoring of progress.

4. **Organizational.** Organizational problems such as unavailability of key staff and lack of corresponding infrastructure may have adverse effects on project outcomes. Project management must plan for efficient execution of the project with proper resourcing and ensuring availability of staff members as and when required

To be effective, there must be monitoring and controlling the risks. Risk monitoring has to be integral with most project activities. Essentially, this means frequent checking during project meetings and critical events.

Monitoring includes:

- a) Publish project status reports and include risk management issues
- b) Revise risk plans according to any major changes in project schedule
- c) Review and reprioritize risks, eliminating those with lowest probability
- d) Brainstorm on potentially new risks after changes to project schedule or scope

When a risk occurs, the corresponding mitigation response should be taken from the risk management plan.

4.9 ROADMAP FOR DIGITIZATION OF OTHER DEPARTMENTS:

4.9.1 ADMINISTRATOR GENERAL (PUBLIC TRUSTEE):

The Public Trustee Department Responsible for matters related to custodianship and administration of deceased's estates and minors' trusts. The Administrator General's Division can be summed up as caring for and protecting the property of disadvantaged or vulnerable citizens. This department being a critical public facing department would be ideal for digitization to improve service delivery and efficiency.

4.9.2 REGISTRAR GENERAL (REGISTRAR OF SOCIETIES)

This Department is responsible for the registration and exemption from registration of societies in Kenya. Their work intersects with of the Registrar of Marriages in some of its processes. Additionally, it is a critical public facing department and therefore it would be most appropriate to be automated and digitized in the next phase.

Annexure

ANNEX I: TERMS OF REFERENCE

a) Brief information on the project:

Strengthening of Good Governance in Kenya Programme is a long running programme funded by the German Ministry of Economic Cooperation and Development (BMZ). The module objective for the current 3-year programme phase (2021 to 2023) is: good governance is improved in selected public sectors.

In order to achieve its objective, the programme pursues a multi-level and multi-actor approach, working with partners along the anti-corruption chain to lay the foundations for less corrupt, fairer and more efficient public service. The program aims to use digital systems to enhance transparency in public procurement (e-procurement) and complaints management, improve data for governance and promote cooperation, coordination and capacity development between state, non-state actors, private sector and media partners. The programme works with state actors both at national and county government to support the development and implementation of policy, legal and institutions reforms for fighting corruption, enhance capacities for investigating corruption and strengthening collaboration and coordination of the various actors along the criminal justice chain. In addition, the programme seeks to sustain civic vigilance to promote social accountability and public participation while working with civil society organizations, private sector and media.

The program also cooperates with the GIZ agriculture program to mainstream anticorruption measures in the sector and supports the establishment of governance instruments its partner counties.

b) Context:

Article 156 of the Constitution of Kenya 2010 and the Office of the Attorney General Act 2012 establishes the Office of the Attorney General. The Office of the Attorney General and

Department of Justice (OAG & DOJ) is mandated to promote the rule of law and public participation; support Government's investment in socio-economic development; promote transparency, accountability, ethics and integrity; spearhead policy, legal and institutional reforms; promote economic governance and empowerment; promotion, fulfillment and protection of human rights; and enhance access to justice.

The mandate is spelled out as *"To facilitate the realization of good governance and respect for the rule of law through the provision of public legal services, protection and promotion of human rights and upholding of ethics and integrity."* The OAG & DOJ in actualizing their vision and mandate in realizing modernization and innovation as a key strategic objective partnered with GIZ Kenya to undertake a needs assessment of the current status of ICT deployment.

The OAG & DOJ and GIZ Kenya now seek to support the automation and digitization of the civil and marriage registries of the OAG & DOJ. This is motivated by the need to automate and digitize in line with current best practices. Furthermore, many of the historical records are manual and the records management could benefit from adoption of modern best practices. Additionally, there is need to build capacity of personnel in records maintenance and archiving for preservation of important data records in sustainable and secure IT platforms.

The successful completion and implementation of the automation and digitization project will subsequently benefit the Kenyan public, in the confidence that their important vital records are maintained and preserved securely for their and future generations use. It will also provide a faster and more cost-efficient services should they require access to those records. The present and future governments shall also benefit from access to key historical government decisions, ordinances, orders and statutes.

- c) GIZ shall hire the contractor for the anticipated contract term, from September 2021 to October 2021
- d) The contractor shall provide the following work/service:

The following two registries have been selected as pilots for the automation and digitization project:

1. civil registry
2. the marriages registry.

The purpose of the assignment is to strengthen their capacity to enhance access to information in the registries as well as safeguard the records through maximization of IT platforms. The assignment entails developing a digitization roadmap/programme for the vital records of the civil and marriage registries.

Scope of Work

The consultants will undertake the following activities:

<u>Activities</u>	<u>Description of activities</u>	<u>Allocated Time Frames</u>	<u>Justification</u>
1.	Consultative Meeting with heads of departments / Stakeholders and Executive Office – Set the framework for work to be undertaken by consultants and identify key staff to work with.	1 full day workshops to be held in Nairobi Morning – Meeting of Departmental Heads to develop the Framework / Workplan. Afternoon – Consultative meeting with leadership to present Workplan and get their input. Output: Framework / Workplan for the entire duration of the assignment.	There is need to involve the heads of departments / stakeholders in developing framework / work-plan and thereafter consult the Executive Office.
2.	Consultant in collaboration with Civil Litigation Registry & Marriage Registry Staff and document departmental duties and daily routines for the two departments.	6 work days Day 1: Marriage Registry a) Registration of marriage by Notice b) Registration of marriage by Special Licence c) Application for Certified Copy of a Marriage Certificate	Departments have several sections where the consultants will have to document the processes. Need to design the work flow processes in easily digestible manner to guide the automation of the same for all sections.

	Development of a Template based on duties, for review with Departmental Staff to ensure it aptly captures all duties and processes.	d) Application for Certificate of No Impediment to Marriage e) Registration of existing Hindu marriages f) Registration of new and existing customary marriages Day 2: Marriage Registry g) Issuance of Marriage Books h) Registration of adoptions i) Registration of foreign marriages j) Objections to marriage k) Verifications of Marriage documents l) Licensing of Ministers of Faith Day 3: Civil Litigation m) Offering of legal advice and preparing legal opinions n) Receiving of statutory notices o) Receiving of judicial review applications and	
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		constitutional petitions p) Receiving of other pleadings and correspondence Day 4: Civil Litigation q) Taxation and the execution process r) Appeals s) Collecting and marking of daily cause list Day 5: Civil Litigation t) Arbitration u) Receiving of summons and filing of defences v) Government liability Day 6 • Consolidate draft templates for review in marriages department • Consolidate draft templates for review in civil registry department	
3.	Departmental Meeting to review and approve the Final Template for the Standard Operating Procedures.	1 work day Day 1: Civil Litigation Day 1: Marriages	Departments have to review the workflow process to ensure the accuracy of the detailed steps
4.	Consultants in collaboration with Civil Registry & Marriages	3 work days Day 1: Marriages Department 1. Registration of marriage by Notice 2. Registration of marriage by Special Licence	The manual steps of how documents are handled- from receipt, storage, access to retrieval is

	Registry Staff review current and develop new record management processes for two departments.	3. Application for Certified Copy of a Marriage Certificate 4. Application for Certificate of No Impediment to Marriage 5. Registration of existing Hindu marriages 6. Registration of new and existing customary marriages 7. Licensing of Ministers of Faith 8. Issuance of Marriage Books 9. Registration of adoptions 10. Registration of foreign marriages 11. Objections to marriage 12. Verifications of Marriage Day 2: Civil Litigation Department • Offering of legal advice and preparing legal opinions • Receiving of statutory notices • Receiving of summons and filing of defences • Receiving of judicial review applications and constitutional petitions • Receiving of other pleadings and correspondence • Taxation and the execution process • Appeals • Collecting and marking of daily cause list • Government liability • Arbitration Day 3: • Collate documentation of all Civil Litigation Department manual processes and document types • Collate documentation of all marriages department manual processes and document types	documented. The different types of documents and classifications of the same are documented.
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5.	Departmental Meeting to review and approve Final Reports Management Policy Template.	1 work days Morning: Marriage department Afternoon: Civil Litigation Department	The leadership of the Departments review and approve the registry manual process.
6.	Meeting with Steering Committee for Approval of the aforementioned Standard Operating Procedures and Records Management Policy. Obtain approval for the same to be cascaded to all Regional Offices.	1 work day.	The documents developed are presented to the Steering Committee for approval of the same to be cascaded to the regions.
7.	Travel to Mombasa & Malindi Regional offices to undertake an audit of existing records in Civil Registration Department & Marriages Department. Presentation of SOPs and Records Management Policy with key staff being trained on the same.	4 work days. Travel days: 2 Workday 1: Mombasa office Workday 2: Malindi Office	Includes Two travel days and two days' workshop with staff of the two departments.

8.	Travel to Kisumu Regional offices to undertake an audit of existing records in Civil Registration Department & Marriages Department. Presentation of SPOs and Records Management Policy with key staff being trained on the same	3 work days. Travel days: 2 Workday: 1.	As Above –(AB)
9.	Travel to Eldoret Regional offices to undertake an audit of existing records in Civil Registration Department & Marriages Department. Presentation of SPOs and Records Management Policy with key staff being trained on the same	3 work days. Travel days: 2 Workday: 1.	AB
10.	Travel to Kisii Regional offices to undertake an audit of existing records in Civil Registration Department & Marriages	3 work days. Travel days: 2 Workday: 1.	AB

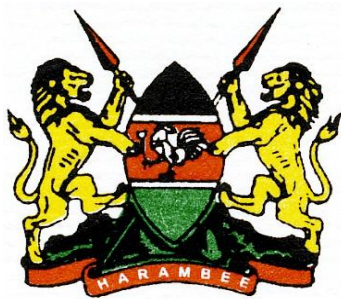
	Department. Presentation of SPOs and Records Management Policy with key staff being trained on the same		
11.	Travel to Nakuru Regional offices to undertake an audit of existing records in Civil Registration Department & Marriages Department. Presentation of SPOs and Records Management Policy with key staff being trained on the same	3 work days. Travel days: 2 Workday: 1.	AB
12.	Travel to Kakamega Regional offices to undertake an audit of existing records in Civil Registration Department & Marriages Department. Presentation of SPOs and Records Management Policy with key staff being	3 work days. Travel days: 2 Workday: 1.	AB

	trained on the same		
13.	Travel to Embu Regional offices to undertake an audit of existing records in Civil Registration Department & Marriages Department. Presentation of SPOs and Records Management Policy with key staff being trained on the same	1 work day.	AB
14.	Travel to Meru Regional offices to undertake an audit of existing records in Civil Registration Department & Marriages Department. Presentation of SPOs and Records Management Policy with key staff being trained on the same	2 work days. Travel days: 1 Workday: 1.	AB
15.	Travel to Nyeri Regional offices to undertake an audit of existing	1 work day	AB

	records in Civil Registration Department & Marriages Department. Presentation of SOPs and Records Management Policy with key staff being trained on the same		
16.	Travel to Machakos Regional offices to undertake an audit of existing records in Civil Registration Department & Marriages Department. Presentation of SOPs and Records Management Policy with key staff being trained on the same	1 work day.	AB
17.	Report writing on Regional Offices Presentations and Training including Input of the Regional Offices on the SOPs and Draft Departmental	3 work days Work 1: Report on Regional Offices Presentations Workday 2: Draft Departmental Management Policy Workday 3: Draft report and departmental validation schedule	The regions may have input on the SOPs and Draft Department Records Management Policy which need to be presented to the Steering Committee Report writing with necessary consultations and

	Record Management Policy. Preparation of Draft Report and Departmental Validation Schedule		clarifications from the OAG
18.	Two Departmental Validation Workshop with representation from the regions	3 work days Day 1: Travel Day Day 2: Marriages Department & civil Registry Department Day 3: Travel Day	Dissemination workshop with representation from the regions
19.	Preparation of Final Report after Validation	2 work days	Input from the validation workshops will inform the final report.
20.	Develop and validate Terms of Reference (ToRs) for undertaking automation and digitization process.	2 Work Days	Consultations required with heads of departments / Stakeholders and Executive Office to help finalize the Terms of Reference (ToRs).
21.	Total Number of days	47 work days	

**ANNEX II: STANDARDS OPERATING PROCEDURES FOR REGISTRAR OF
MARRIAGES DEPARTMENT**



REPUBLIC OF KENYA

**OFFICE OF THE ATTORNEY GENERAL
AND DEPARTMENT OF JUSTICE**

**REGISTRAR OF MARRIAGES STANDARD
OPERATING PROCEDURE
FOR DIGITIZATION**

1.1 Purpose of the Procedure

The purpose of this Standard Operating Procedure (SOP) is to establish uniform procedures pertaining to the service, performance and the reporting of the Registrar Marriages activities.

1.2 Scope of Application

This procedure is applicable to all sites/areas applicable and to all personnel involved in the planning, coordination, conducting, and reporting of Registrar Marriages activities at OAG & DOJ. A detailed procedure of:

1. Registration of Marriages:
 - a) Registration of marriage by notice:
 - Civil Marriage by Notice
 - Church/Hindu Marriage by Notice
 - b) Registration of marriage by special licence:
 - Civil Marriage Special Licence
 - Church/Hindu Marriage by Special Licence
 - c) Registration of Customary marriage:
 - Registration of Existing Customary Marriage
 - Registration of New Customary Marriage
 - d) Registration of existing Hindu marriage
 - e) Registration of foreign marriages
2. Issue of certificate of no impediment to marriage
3. Issuance of certified copy of entry of marriage
4. Licensing of minister of faith
5. Issuance of marriage books
6. Registration of adoptions
7. Registration of divorces
8. Verification of marriage documents
9. Objections to marriages

1.3 Responsibility for Implementation

HOD RG is the overall in charge of implementing this procedure and Registrar Marriages personnel will be responsible for operation of the SOP

1.4 Definition of Terms and Abbreviations

- **SOP** **Standard Operating Procedure.**
- **DRG** **Deputy Registrar General**
- **SDRG** **Senior Deputy Registrar General**
- **ARG** **Assistant Registrar General**

2 PROCEDURES

2.1 REGISTRATION OF MARRIAGES

2.2 Purpose

The purpose of this procedure is to provide guidance on:

1. Registration of marriage by notice:
 - a. Civil Marriage by Notice
 - b. Church/Hindu Marriage by Notice
2. Registration of marriage by special licence
3. Civil Marriage Special Licence
4. Church/Hindu Marriage by Special Licence
5. Registration of Customary marriage
 - a. Registration of Existing Customary Marriage
 - b. Registration of New Customary Marriage
6. Registration of existing Hindu marriage
7. Registration of foreign marriages

2.3 Scope

This procedure covers the process for registration of Marriages

2.4 Reference

1. ISO 9001:2015 Standard
2. Quality Manual
3. Marriage Act No.4 of 2014

2.5 Terms (Definitions)

1. **HOD** **Head of Department**

2. ISO International Organization for Standardization
3. OAG & DOJ Office of the Attorney General and Department of Justice

2.6 Responsibilities

Registrar of Marriages, State counsel, marriage clerks, record management officers and Office administrative Assistants shall ensure that these procedures are adequately implemented and maintained. All staff within this department must follow and implement these procedures.

2.7 Key performance indicator

1. Number of Marriage certificates issued.

2.8 Resources

1. Finance
2. Infrastructure
3. Personnel

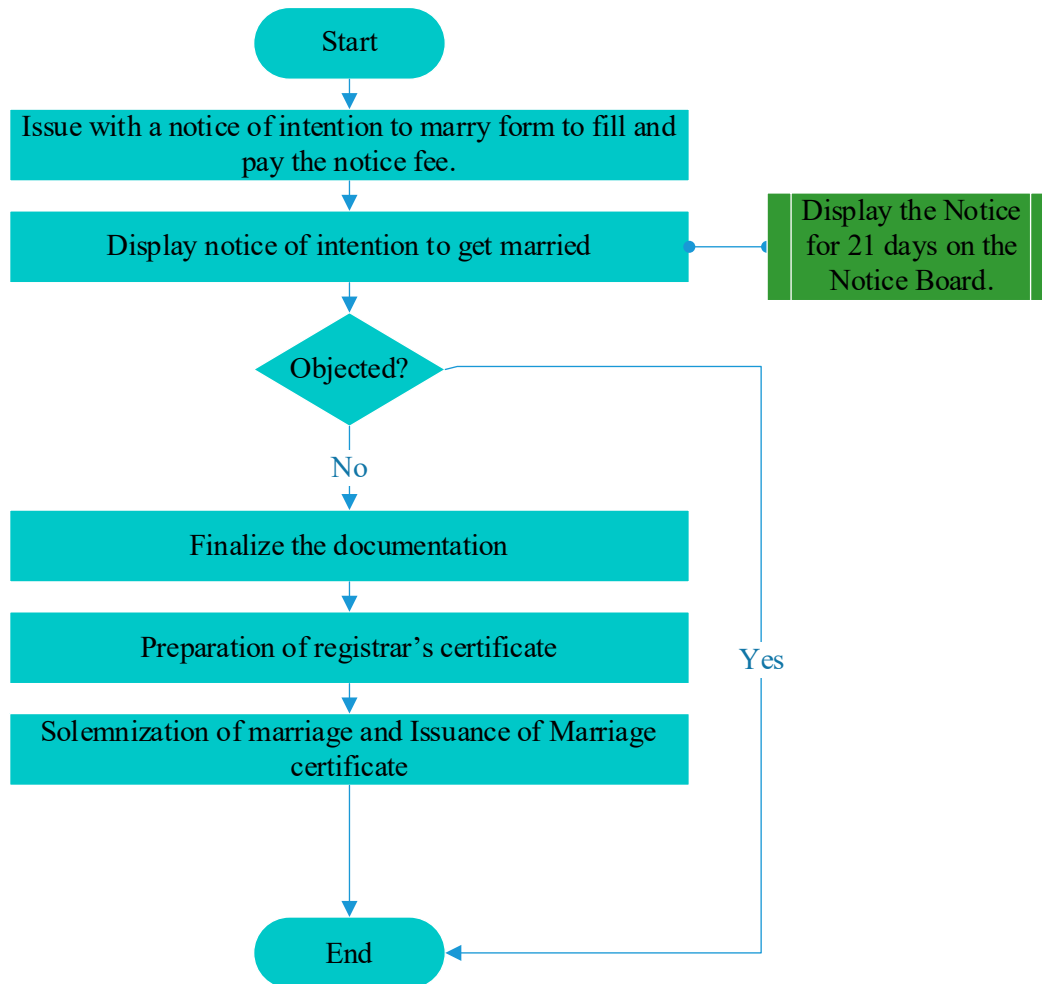
2.9 REGISTRATION OF MARRIAGE BY NOTICE

2.9.1 Procedure for Civil Marriage by Notice

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required documents: National Identity Card or valid Passport or valid Alien Card for Refugees, Birth certificate, one coloured passport-size photo for each Applicant, Death Certificate (if widow or widower), Divorce Decree Absolute (If a party was married but is divorced), A sworn affidavit to confirm marital status in the event the Divorce Decree or the Death Certificate is more than 2 years old, Identity Cards or Valid Passports for the two (2) witnesses	Both parties Must give Consent of application.	Marriage Clerk

2.	Marriage clerk	Verification of Applicants' uploads and details.	Approval for Payment	Client
3.	Client	Payment of the Requisite fees: Ksh 600 for Notice	Payment completion	Marriage Clerk
4.	Marriage Clerk	Display on the notice board for 21 days Place Notices for display Includes details such as date of notice, names of the parties, residence, place of marriage and date of marriage.	Display takes place for 21 days and No objection received	Client
5.	Client	Booking of an appointment for an interview.	Interview date to be within 30 days from the lapse of 21 days' notice Both parties Must Be Present.	State Counsel
6.	Client, State Counsel	Interview and submission of original documents uploaded in step 1 for verification. Approval for payment of Requisite Amount	Verified original documents	Client
7.	Client	Payment of: 3300 ksh (Marriage happening in RM Office) 9700 ksh (Marriage Happening Outside RM Office)	Payment Completion	State Counsel
8.	State Counsel	Generation and Issuance of Clearance Certificate. (Registrar's certificate or special licence)	Payment conforms to the indicated venue	Client
9.	State Counsel	Booking of Solemnization Date	Solemnization Date is within the statutory 90 days period	State Counsel
10.	State Counsel, Client	Solemnization. Signing of Certificates.	Both Parties and Witnesses must be present	Office Administrative Assistant, State Counsel
11.	Marriage clerk	Scanning and uploading of original marriage certificate into the system	Certificates Signed and a backup of original copies are archived.	Client

2.9.1.1 Flow chart



Flowchart 1: Registration of Civil Marriage by Notice

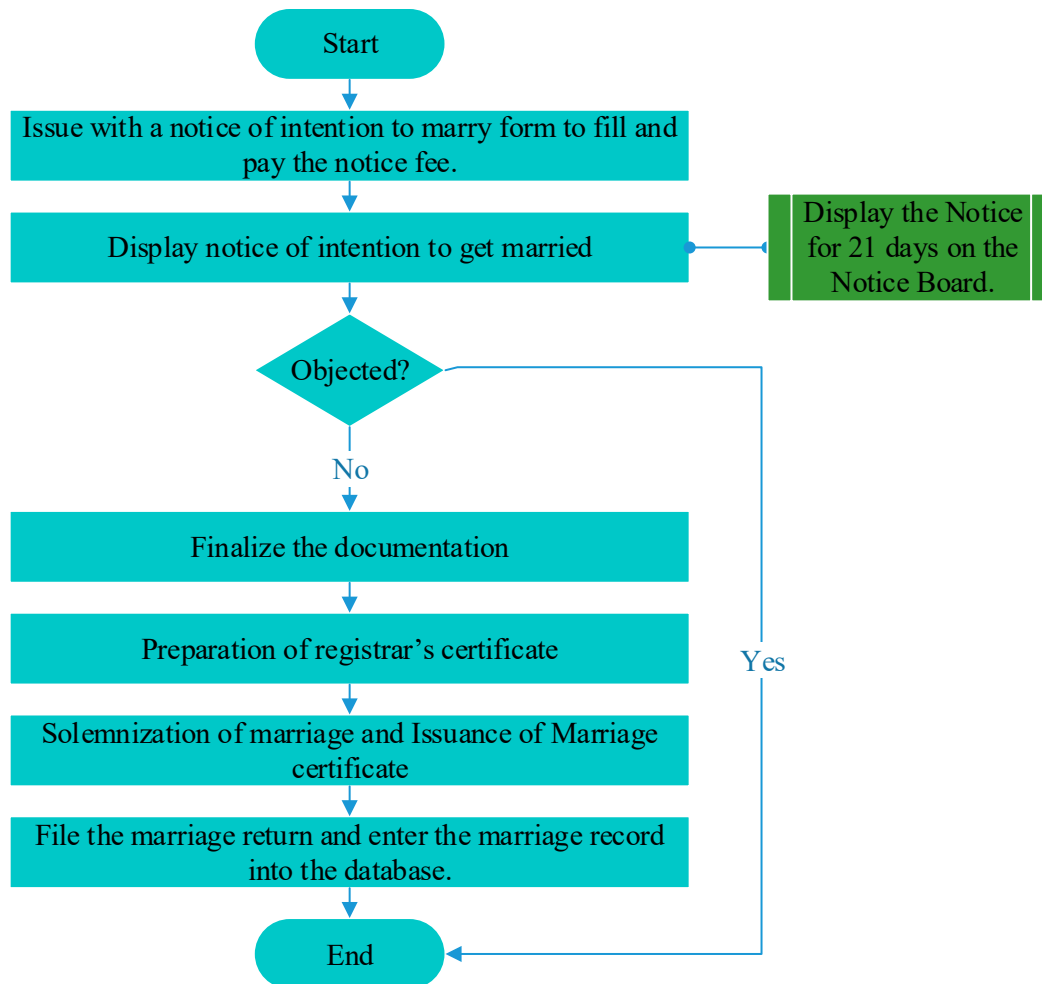
2.9.2 Procedure for Church/Hindu Marriage by Notice

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required documents: National Identity Card or valid National Identity Card, valid Passport or valid Alien Card for Refugees, One coloured passport-size photo for each Applicant,	Both parties Must give Consent of application.	Marriage Clerk

		Death Certificate (if widow or widower),Divorce Decree Absolute (If the party had been married before and divorced),A sworn affidavit to confirm marital status in the event the Divorce Decree or the Death Certificate is more than 2 years' old, Copy of license for the Minister of Faith, Serial number of the marriage book to be used (to be obtained from the Minister of Faith),Wedding invitation card		
2.	Marriage clerk	Verification of applicants uploads and details.	Approval for Payment. Minister of Faith is Licensed.	Client
3.	Client	Payment of the Requisite fees Ksh 600 for Notice	Payment completion	Marriage Clerk
4.	Marriage Clerk	Place Notices to the physical and Online Notice boards. Notices for display Includes details such as date of notice, names of the parties, residence, place of marriage and date of marriage. Display of notice to run for 21 days.	Display takes place for 21 days and No objection received	Client
5.	Client	Booking of an appointment for an interview.	Appointment date is within 90 days from the application day in step 1. Both Parties must be Present	Counsel
6.	Client, Counsel	Interview and submission of original documents uploaded in step 1 for verification. Approval for payment of Requisite Amount	Approved original Identification Documents.	Client
7.	Client	Payment of: 800 ksh (Marriage happening in licensed Venue) 7200 ksh (Marriage Happening in Unlicensed Venue)	Payment Completion	Counsel

8.	Counsel	Generation and Issuance of Clearance Certificate.	Venue conforms with the payment made by the client.	Client
9.	Client, Minister of Faith	Solemnization, Signing of Certificates, Filing Marriage Returns	Solemnization Date is within the legal Period.	Administrative Secretary
10.	Office Administrative Assistant	Record Marriage Returns in the database.		Office Administrative Assistant

2.9.2.1 Flowchart



Flowchart 2:Registration of Church/Hindu Marriage by Notice

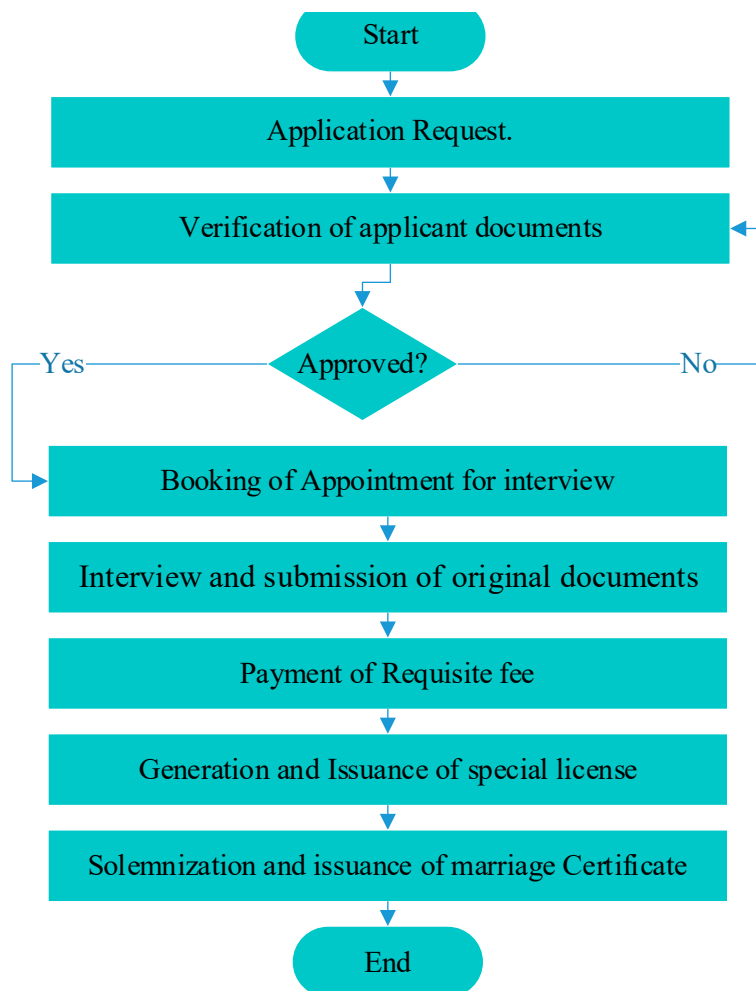
2.10 REGISTRATION OF MARRIAGE BY SPECIAL LICENCE

2.10.1 Procedure for Civil Marriage Special License

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required documents: Birth Certificates, Identification cards/ Passports, coloured passport size photo, Proof of marital status (Affidavit for Kenyans, Certificate of No Impediment to marriage for foreign nationals, Death Certificate (if widow or widower), Divorce Decree Absolute (If a party was married but is divorced), A sworn affidavit to confirm marital status in the event the Divorce Decree or the Death Certificate is more than 2 years old Additional documents for: Case 1: Both Kenyans: Documented reason to prove insufficient time to place 21-day notice Kenyans residing/ from abroad to attach entry stamp and return ticket/visa/resident/work permit Kenyans going outside the country to attach ticket and visa/permit Any other documentary evidence in support of the application Case 2: One Kenyan & One Foreigner: For the foreigner, an entry stamp and return ticket/visa/work permit. Case 3: Both Foreigners: For the foreigner, entry stamp and air ticket or work permit	Both parties Must give Consent of application. Both applicants must be resident in Kenya for a period of at least seven (7) days preceding the application	Marriage Clerk

		For Foreigners, any document in a language other than English must be translated and verified true translation by the issuing/authorised institutions or embassies		
2.	Marriage clerk	Verification of applicants uploads and details.	Application approved or sent back for corrections	Client
3.	Client	Booking of an appointment for an interview.	Daily Appointment list	State Counsel
4.	Client, State Counsel	Interview and submission of original documents uploaded in step 1 for verification. Approval for payment of Requisite Amount	Approved Application	Client
5.	Client	Payment of the Requisite fees: Ksh. 9700 – Taking place in RM’s Office Ksh. 16700 – Taking Place Out of RM’s Office	Payment completion	State Counsel
6.	State Counsel,	Generation and issuance of special licence	Payment conforms to the indicated venue	Client
7.	State Counsel	Booking of Solemnization Date	Solemnization Date is within 90 days from approval Date.	State Counsel
8.	State Counsel, Client	Solemnization. Signing of Certificates.	Both Parties and Witnesses must be present	Office Administrative Assistant, Registrar of Marriages
9.	Office Administrative Assistant	Scanning and uploading of signed original marriage certificates into the system	Certificates Signed and a backup of original copies is archived.	Client

2.10.1.1 Flow chart



Flowchart 3: Registration of civil marriage by special licence

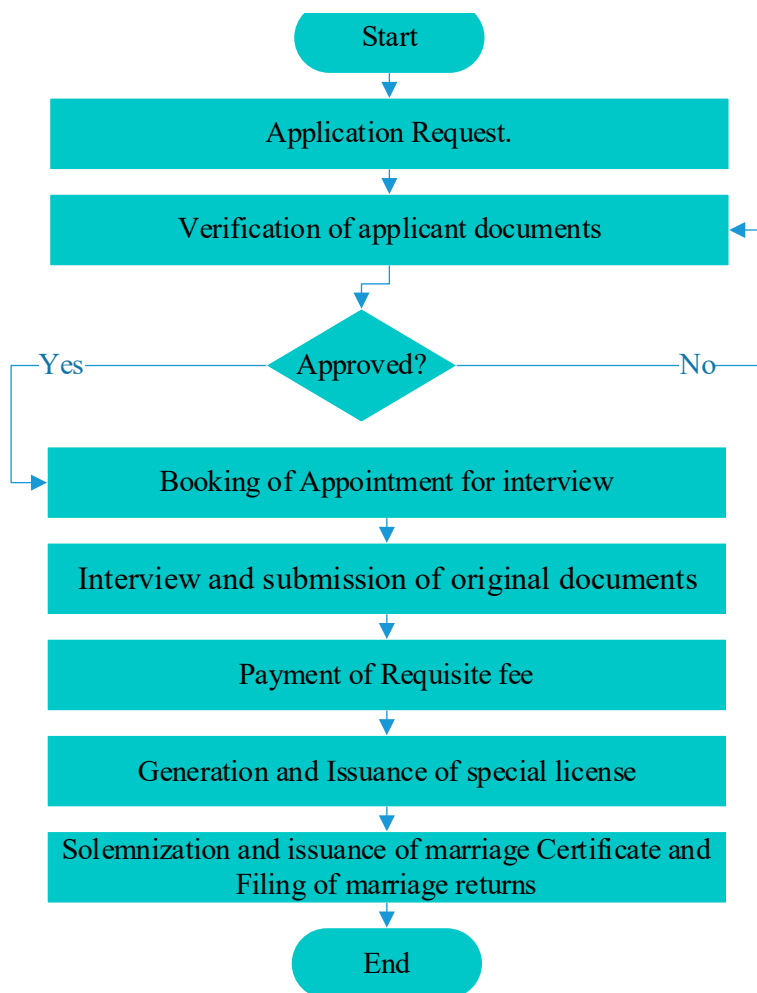
2.10.2 Procedure for Church/Hindu Marriage by Special Licence

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required documents: Birth Certificates, Identification cards/ Passports, coloured passport size photo, Proof of marital status (Affidavits to marital status for Kenyans, Certificate of no impediment to marriage for foreign nationals, Death certificate {in case of widowed person}, Divorce Decree	Both parties Must give Consent of application. Both applicants must be resident in Kenya for a period of at least seven (7) days preceding the application	Marriage Clerk

		Absolute/Decree Nisi), A Copy of Ministers of faith licence & Church Marriage book serial No. Additional documents for: Case 1: Both Kenyans: Documented reason to prove insufficient time to place 21-day notice Kenyans residing/from abroad to attach entry stamp and return ticket/visa/resident/work permit Kenyans going outside the country to attach ticket and visa/permit Any other documentary evidence in support of the application Case 2: One Kenyan & One Foreigner: For the foreigner, an entry stamp and return ticket/visa/work permit. Case 3: Both Foreigners: For the foreigner, entry stamp and air ticket or work permit For Foreigners, any document in a language other than English must be translated and verified true translation by the issuing/authorised institutions or embassies		
2.	Marriage clerk	Verification of applicants uploads and details.	All documents approved	Client
3.	Client	Booking of an appointment for an interview.		State Counsel
4.	Client, State Counsel	Interview and submission of original documents uploaded in step 1 for verification. Approval for payment of Requisite Amount	Approved applications	Client
5.	Client	Payment of the Requisite fees: Ksh. 7200 - Taking place in Licensed venue Ksh. 14200 - Taking in unlicensed venue	Payment completion	State Counsel

6.	State Counsel,	Generation and issuance of special licence	Payment conforms to the chosen venue.	Client
7.	Client, Minister of Faith	Solemnization, Signing of Certificates, Filing Marriage Returns	Solemnization Date is within 90 days from the date of approval.	Office Administrative Assistant
8.	Marriage clerk	Record Marriage Returns in the database.		Marriage clerk

2.10.2.1 Flow chart



Flowchart 4:Registration of Church/Hindu Marriage by Special Licence

2.11 REGISTRATION OF CUSTOMARY MARRIAGE

2.11.1 Procedure for registration of Existing Customary Marriage

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required documents: National Identity card or Valid Passport Birth certificates Colored passport size photo - one each National Identity Cards of witnesses who participated in the cultural ceremonies	Both parties Must have not entered into a Civil or Christian Marriage.	Marriage Clerk
2.	Marriage clerk	Verification of Applicants' uploads and details.	Approved to book an appointment	Client
3.	Client	Booking an appointment for an interview.	Must be within 7 days from date of approval	State Counsel
4.	Client, State Counsel	Interview and submission of original documents uploaded in step 1 for verification. (If interview is successful, Approval and generation of an application form to be taken to the Area chief where the customary marriage took place and listed witnesses for certification Uploading of a signed form by the client Client books for an interview to present signed form and pay Payment of Ksh 3900/- and booking of a registration date) (Based on the choice of parties upon interview, the Registrar may approve for marriage conversion to civil or Christian marriages)	Both parties must be Present	Client
5.	Client	Payment of: Ksh. 3900	Payment Completion	Client
6.	State Counsel	Booking of Registration Date	Registration Date is within 14 days after the time of payment	Client

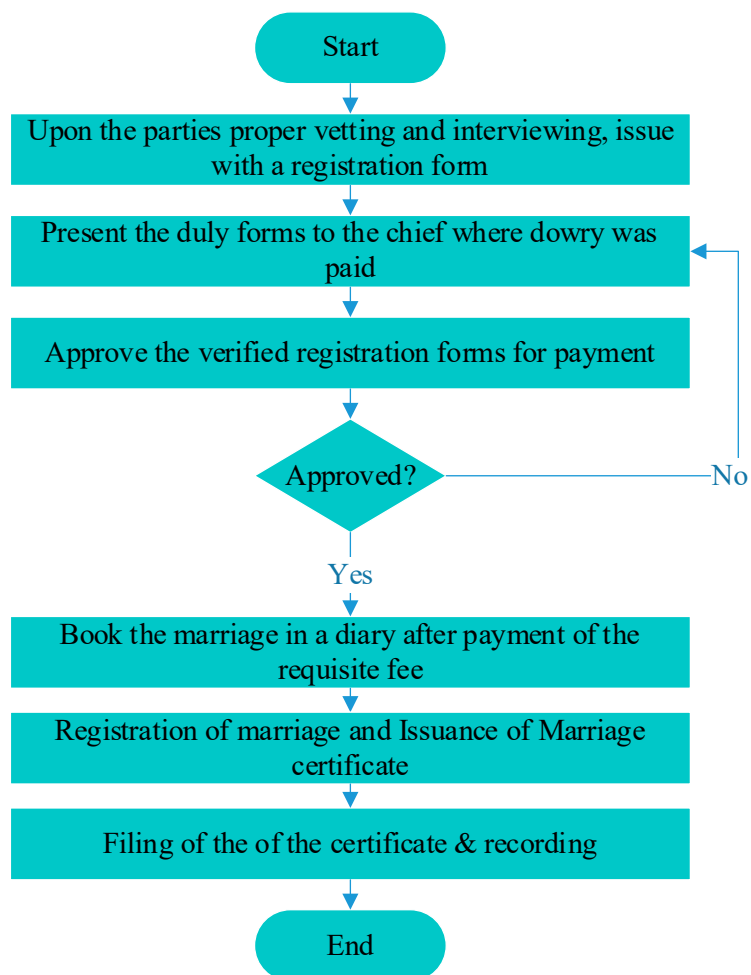
7.	State Counsel, Client	Registration. Signing of Certificates.	Both Parties and Witnesses must be present	Office Administrative Assistant, Registrar of Marriages
8.	Office Administrative Assistant	Scanning and uploading of the signed registration certificate	Certificates Signed, and a backup of original copies is archived.	Records management officer

2.11.2 Procedure for registration of New Customary Marriage

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required documents: National Identity card or Valid Passport Birth certificates Colored passport size photo - one each National Identity Cards of witnesses who participated in the cultural ceremonies Letter from the Chief where the customary marriage took place	The application must be within 6 months from the time of marriage. Both parties Must have not entered into a Civil or Christian Marriage.	Marriage Clerk
2.	Marriage clerk	Verification of applicants uploads and details. Approval to pay Ksh. 600/= Display on the notice board for 14 days.	Notice displays for 14 days without any objection	Client
3.	Client	Booking an appointment for an interview after 14 days.	Interview date within 14 days from lapse of notice	State Counsel
4.	Client, State Counsel	Interview and submission of original documents uploaded in step 1 for verification. Approval for payment of Requisite Amount	Approved original Documents	Client
5.	Client	Payment of: Ksh. 3,300	Payment Completion	Client

6.	State Counsel	Booking of Registration Date	Registration Date is within 14 days from the	Counsel
7.	Counsel, Client	Registration Signing of Certificates.	Both Parties and Witness must be present	Office Administrative Secretary, Registrar of Marriages
8.	Office Administrative Secretary	Scanning and uploading of signed registration certificate	Certificates Signed, Sealed and a backup of original copies is archived.	Client

2.11.1.1 Flow chart



Flowchart 5: Registration of New and Existing Customary Marriage

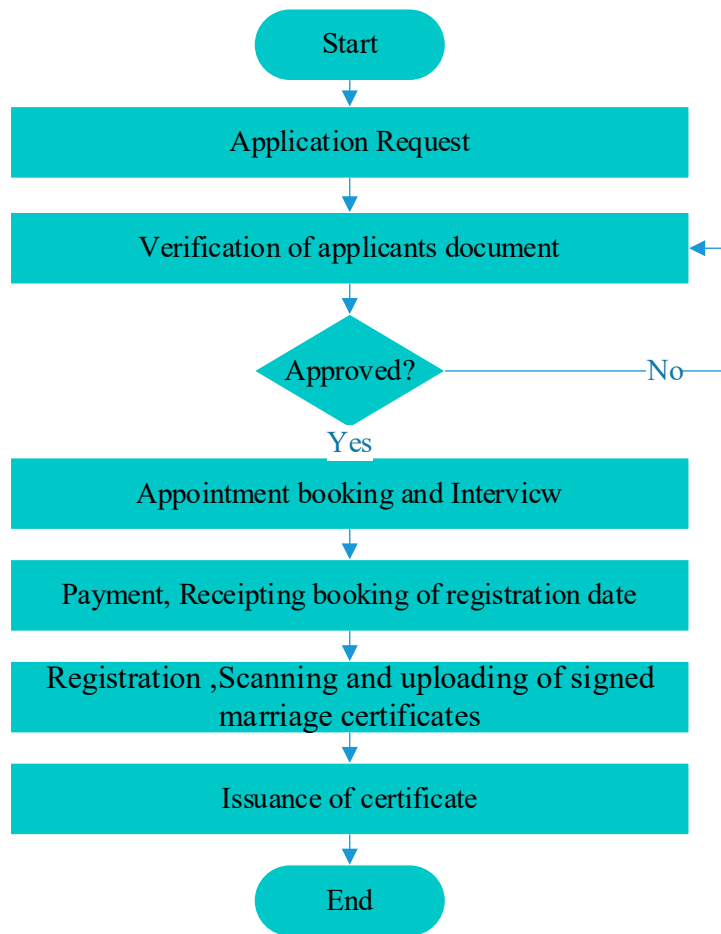
2.12 REGISTRATION OF EXISTING HINDU MARRIAGE

2.12.1 Procedure for registration of Existing Hindu Marriage

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required documents: Marriage Certificate issued under Cap 157 (Certification to be done by the Hindu Council or the Sikh Supreme Council) A forwarding letter from the Hindu Council of Kenya or the Sikh Supreme Council A letter from the temple confirming that the marriage took place Identification documents (Valid Passports or National Identification Card) Certificate of Registration as a Citizen of Kenya where needed (Foreign Nationals born outside Kenya but have obtained Kenyan citizenship through registration) If a holder of an Indian passport, either a Certificate of No Impediment or a Letter of Surrender of Passport to the Indian High Commission Coloured Passport Photo (1 each)	Both parties Must give Consent of application.	Marriage Clerk
2.	Marriage clerk	Verification of applicants uploads and details.	Approval for Booking of interview	Client
3.	Client	Booking an appointment for an interview.		State Counsel

4.	Client, State Counsel	Interview and submission of original documents uploaded in step 1 for verification. Approval for payment of Requisite Amount	Both Parties must be present. Approved original Identification Documents	Client
5.	Client	Payment of: Ksh. 3900	Payment Completion	Client
6.	State Counsel	Booking of registration Date	Registration Date is within the 14 days from date of payment	State Counsel
7.	State Counsel, Client	Registration. Signing of Certificates.	Both Parties and Witness must be present	Office Administrative Secretary, Registrar of Marriages
	Office Administ rative Secretary	Scanning and uploading of signed marriage certificates	Certificates Signed, and a backup of original copies is archived.	Clerk

2.12.1.1 Flow chart



Flowchart 6: Registration of Existing Hindu Marriage

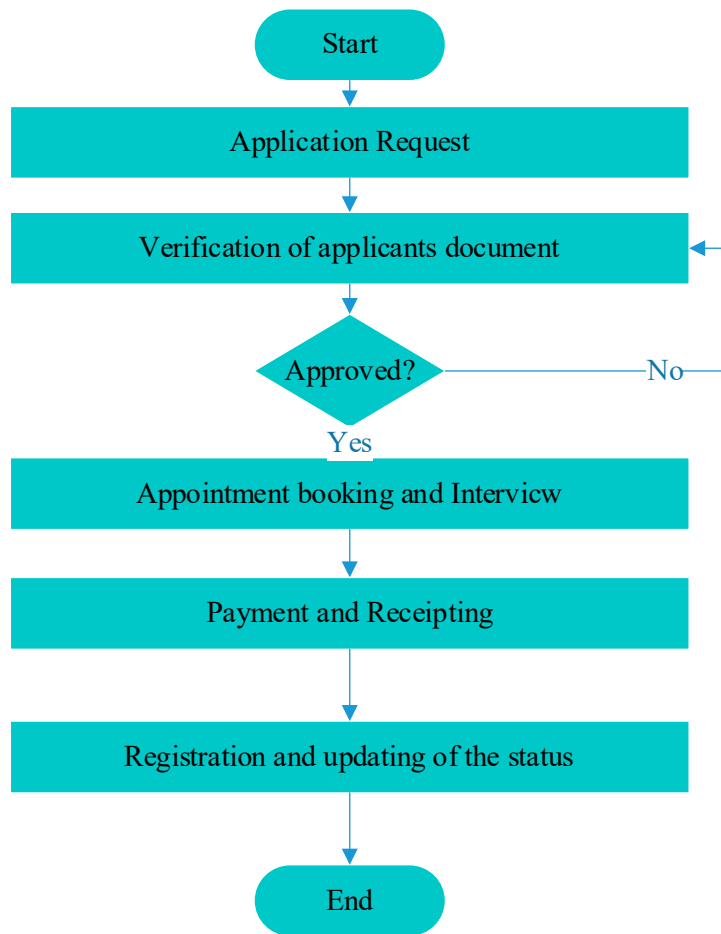
2.13 REGISTRATION OF FOREIGN MARRIAGES

2.13.1 Procedure for registration of Foreign Marriages

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required documents: Birth Certificates, Identification cards/ Passports, colored passport size photo, Proof of marital status (Affidavits to marital status for Kenyans, Certificate of no impediment to marriage for foreign nationals, Death certificate (in case of	The marriage must have been solemnized outside the country	Marriage Clerk

		widowed person), Divorce Decree Absolute/Decree Nisi)		
2.	Marriage clerk	Verification of applicants uploads and details.	Approved to book an appointment	Client
3.	Client	Booking of an appointment for an interview and submission of original documents		Counsel
4.	Client, Counsel	Interview and submission of original documents uploaded in step 1 for verification. Approval for payment of Requisite Amount	Both parties must be Present	Client
5.	Client	Payment of: 1000 ksh	Payment Completion	Administrative Secretary
6.	Administrative Secretary	Records the entry into the marriages Register		Client

2.12.1.2 Flow Chart



Flowchart 7: Registration of Foreign Marriages

2.14 ISSUANCE OF CERTIFICATE OF NO IMPEDIMENT TO MARRIAGE

2.14.1 Purpose

The purpose of this procedure is to provide guidance on issuance of certificate of no impediment to marriage to Kenyan citizens getting married outside the country.

2.14.2 Scope

This procedure covers the process for issuing a certificate of no impediment.

2.14.3 Reference

1. ISO 9001:2015 Standard
2. Quality Manual
3. Marriage Act No.4 of 2014

2.14.4 Terms (Definitions)

1. HOD Head of Department
2. ISO International Organization for Standardization
3. OAG & DOJ Office of the Attorney General and Department of Justice

2.14.5 Responsibilities

Registrar of Marriages, State counsel, marriage clerks, record management officers and Office administrative Assistants shall ensure that these procedures are adequately implemented and maintained. All staff within this department must follow and implement these procedures.

2.14.6 Key performance indicator

- Number of certificates of no impediment to marriage issued

2.14.7 Resources

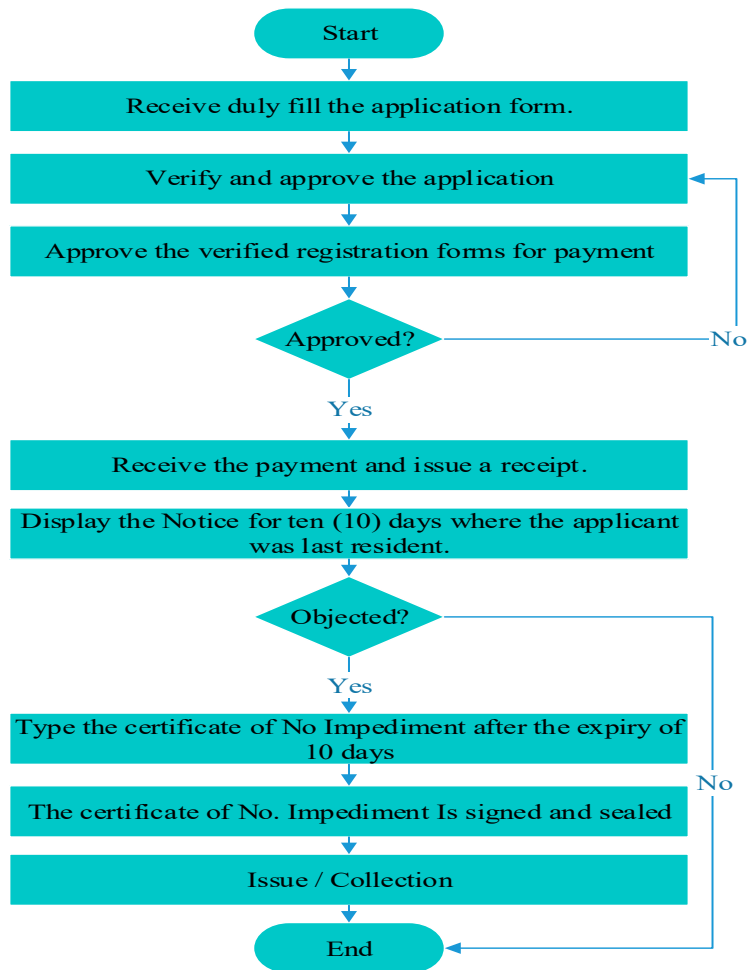
1. Finance
2. Infrastructure
3. Personnel

2.14.8 Procedure for application of Certificate of no impediment to Marriage

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required documents: Applicant's birth Certificate, Passport, coloured passport size photos, death certificate (if the applicant is widowed), Divorce Decree Absolute (if the applicant is divorced), a sworn affidavit (if the Divorce Decree/death certificate Applicant is more than 2 years old), Fiancée's certified Passport copy. If the applicant is out of the country, he/she should upload notarized documents or documents certified by the Kenyan Embassy or foreign missions abroad.	Applicant must be a Kenyan citizen seeking to get married outside Kenya.	Marriage Clerk

		If the applicant is in the country, he/she should upload scanned documents and submit originals before the registrar for verification.		
2.	Marriage clerk	Verification of applicants uploads and details.		Client
3.	Client	Booking of an appointment for submission of original documents for verification (This applies to clients in the country)		State Counsel
4.	client, state Counsel	-Submission and verification of original documents uploaded in step 1(This applies to clients in the country) -Verification of uploaded documents (this applies to clients outside the country) - approval for payment of Requisite Amount	Approved documents	Client
5.	Client	Payment of: Ksh. 10,000	Payment Completion	State Counsel
6.	Marriage Clerk	Display the details of the applicant on the notice board of his/her last place of residence (registrar's office/county offices) for 10 days	Notice displays for 10 days without objection	Marriage clerk, State counsel
7.	State Counsel, Administrative Office Assistant	Generation, Printing and signing/sealing of Certificate of No impediment to marriage	Certificate is valid for a period of 6 months from the date of issuance.	Administrative Office Assistant, Registrar of Marriages
8.	Marriage clerk	Uploading of scanned certificates to the system and issuance of the same to the client.	Certificates Signed, Sealed and a backup of original copies is archived.	Client

12.14.8.1 Flow chart



Flowchart 8: Application of Certificate of no impediment to Marriage

2.15 ISSUANCE OF CERTIFIED COPY OF ENTRY OF MARRIAGE

2.15.1 Purpose

The purpose of this procedure is to provide guidance on issuance of certified copy of entry of marriage.

2.15.2 Scope

This procedure covers the process for issuance of certified copy of entry of marriage.

2.15.3 Reference

1. ISO 9001:2015 Standard
2. Quality Manual
3. Marriage Act No.4 of 2014

2.15.4 Terms (Definitions)

1. HOD Head of Department
2. ISO International Organization for Standardization
3. OAG & DOJ Office of the Attorney General and Department of Justice

2.15.5 Responsibilities

Registrar of Marriages, State counsel, marriage clerks, record management officers and Office administrative Assistants shall ensure that these procedures are adequately implemented and maintained. All staff within this department must follow and implement these procedures.

2.15.6 Key performance indicator

- Number of certified copies of entry of marriage issued

2.15.7 Resources

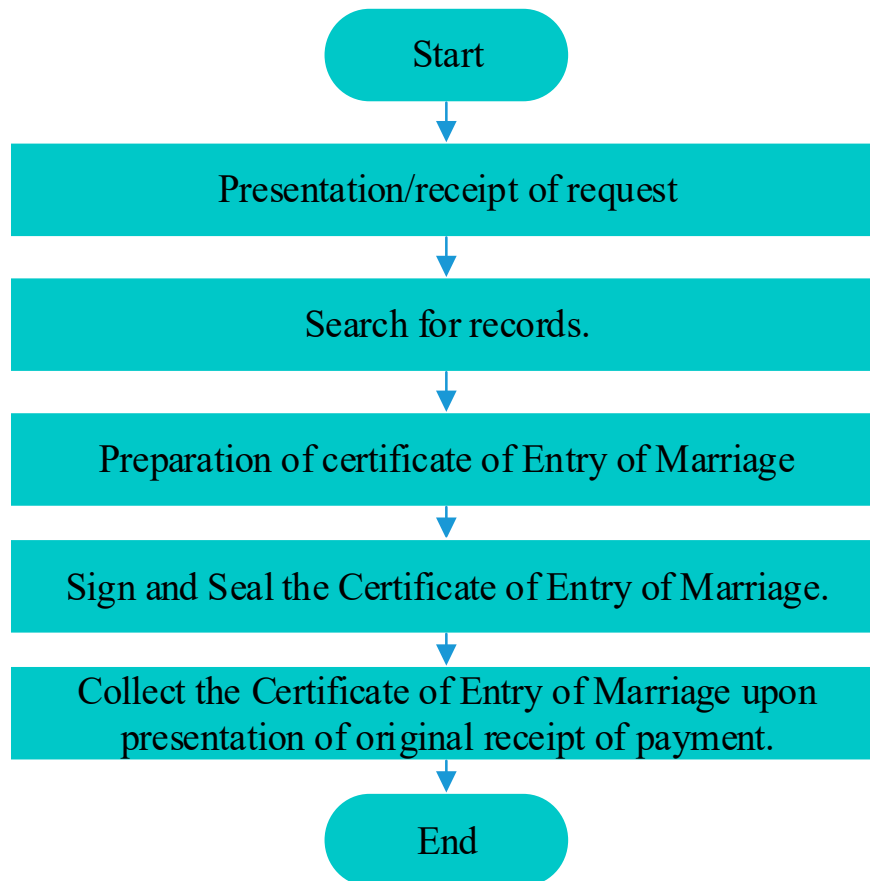
- Finance
- Infrastructure
- Personnel

2.15.8 Procedure of application of certified copy of Entry to Marriage:

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required details: System of marriage, Names of the parties to the marriage, Date of marriage, Place of marriage, number of copies needed, officiated by: Registrar or minister of faith), Name and address of registry office/place of worship, Entry number of certificate or register, other particulars which would help to trace the entry Payment of requisite fee: 1100 ksh. for one copy and 600 ksh. for any other additional copy.	Payment Completion	Marriage Clerk
2.	Marriage clerk	Verification of applicant's details and search for records. If record is found, it moves to approval stage: Processing if the record is authentic If record needs amendment, the client gets a notification on what to do and a payment of ksh.200 is made- the application moves to processing If record not found client gets a notification to: get an original certificate from the church (if the church has not submitted the original or a certification form is generated to be completed by the church together with some additional requirements.	No Amendment to be made	State Counsel
3.	State Counsel	Processing. This involves approval, typing, signing, sealing, scanning	Certificate is issued within 4 days after payment.	Administrative Secretary,

		and uploading of the completed certificate.	Certificate is valid for a period of 12 months from issuance date.	Registrar of Marriages
4.	Administrative office Assistant	Issuance of a certified copy of a marriage certificate and Uploading of the scanned copy to the system. Collection. The client gets a notification that the certificate is ready for collection	Certificates Signed, Sealed and a backup of original copy is archived.	Client

2.15.8.1 Flow Chart



Flowchart 9: Application of certified copy of Entry to Marriage

2.16 LICENSING OF MINISTER OF FAITH

2.16.1 Purpose

The purpose of this procedure is to provide guidance on the licensing of minister of faith in relation to performing of Christians, Hindu and Muslim systems of marriages

2.16.2 Scope

This procedure covers the process for Licensing of the Minister of faith.

2.16.3 Reference

1. ISO 9001:2015 Standard
2. Quality Manual
3. Marriage Act No.4 of 2014

2.16.4 Terms (Definitions)

- HOD Head of Department
- ISO International Organization for Standardization
- OAG & DOJ Office of the Attorney General and Department of Justice

2.16.5 Responsibilities

Registrar of Marriages, State counsel, marriage clerks, record management officers and Office administrative Assistants shall ensure that these procedures are adequately implemented and maintained. All staff within this department must follow and implement these procedures.

2.16.6 Key performance indicator

- Number of licensed ministers of faith

2.16.7 Resources

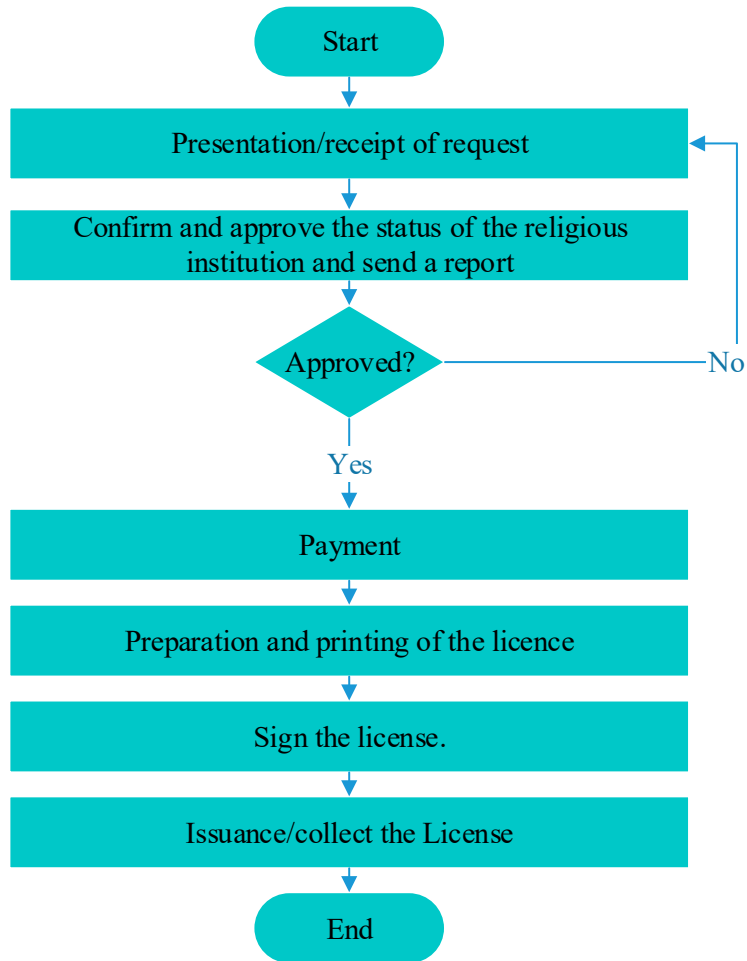
1. Finance
2. Infrastructure
3. Personnel

2.16.8 Procedure for Licensing of Minister of Faith

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required details:		Marriage Clerk

		Upload a Letter of Recommendation from the organization on a letterhead signed by an authorized official, Copy of the Registration Certificate of the religious institution, Copy of National Identity card or Valid Passport of the Minister to be licensed, Coloured passport-size photo for the minister to be licensed For renewal, surrender of the old license		
2.	Counsel	Verification of applicant's details and uploads. Forwarding of approved application to marriages section		Society Staff
3.	Society Staff	Verification of existence of a society attached to the applicant	Minister of faith must be attached to society (Church/temple)	Counsel
4.	Counsel	Approval for payment of Requisite fee		Client
5.	Client	Payment of: 2,000 ksh (for new licence) or 1,000 ksh (In case of renew renewal of a licence)	Payment Completion	Counsel
6.	Counsel	Generation, Printing and signing/sealing of the licence	Licence is valid for a period of 12 months from issuance date.	Administrative Secretary, Registrar of Marriages
7.	Administrative Secretary	Issuance of original Licence and upload scanned copies to the system.	Certificates Signed, Sealed and a backup of original copies is archived.	Client

2.16.8.1 Flow Chart



Flowchart 10: Licensing of Minister of Faith

2.17 ISSUANCE OF MARRIAGE BOOKS

2.17.1 Purpose

The purpose of this procedure is to provide guidance on the issuance of the marriage books in relation to performing of Christians, Hindu and Muslim systems of marriages

2.17.2 Scope

This procedure covers the process for Issuance of the marriage book.

2.17.3 Reference

1. ISO 9001:2015 Standard
2. Quality Manual
3. Marriage Act No.4 of 2014

2.17.4 Terms (Definitions)

- HOD Head of Department

- ISO International Organization for Standardization
- OAG & DOJ Office of the Attorney General and Department of Justice

2.17.1 Responsibilities

Registrar of Marriages, State counsel, marriage clerks, record management officers and Office administrative Assistants shall ensure that these procedures are adequately implemented and maintained. All staff within this department must follow and implement these procedures.

2.17.2 Key performance indicator

- Number of marriage books issued

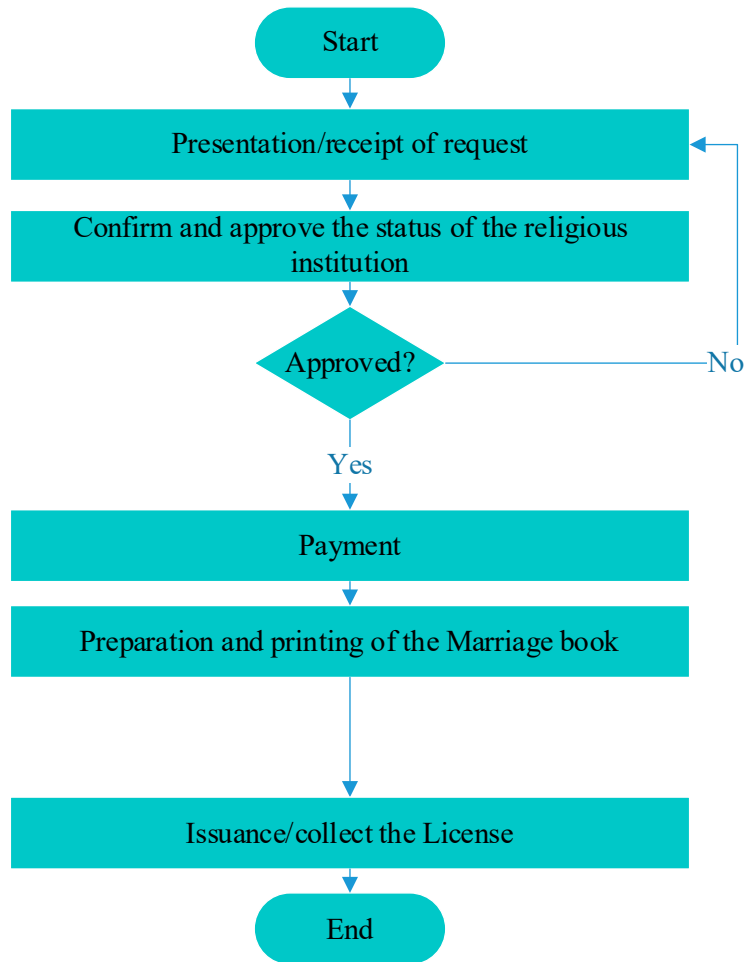
2.17.3 Resources

1. Finance
2. Infrastructure
3. Personnel

2.17.5 Procedure for Issuance of Marriage book

Step	Source of input	Activity	Condition	Receiver Output
1.	Client	Makes an application and uploads scanned copies of the required details: Upload a Letter of Recommendation from the organization on a letterhead signed by an authorized official, Copy of the Registration Certificate of the religious institution, Copy of National Identity Card or valid Passport of the Marriage Officer, Copy of license of the Minister of Faith, Coloured passport-size photo of the Marriage Officer		Marriage Clerk
2.	Counsel	Verification of applicant's details and uploads. Forwarding of approved application to marriages section		Society Staff
3.	Society Staff	Verification of existence of a society	Church/temple must be registered	Counsel
4.	Counsel	Approval for payment of Requisite fee		Client
5.	Client	Payment of: 25,000 ksh	Payment Completion	Counsel
6.	Counsel	Generation, Printing of the Marriage book	Marriage book contains 50 certificates.	Administrative Secretary
7.	Administrative Secretary	Issuance of Marriage book		Client

2.17.8.1 Flow Chart



Flowchart 11: Issuance of Marriage book

2.18 REGISTRATION OF ADOPTIONS

2.18.1 Purpose

The purpose of this procedure is to provide guidance on registration of adoptions

2.18.2 Scope

This procedure covers the process for registration of adoptions.

2.18.3 Reference

1. ISO 9001:2015 Standard
2. Quality Manual
3. Children's Act 2001

2.18.4 Terms (Definitions)

- HOD Head of Department
- ISO International Organization for Standardization
- OAG & DOJ Office of the Attorney General and Department of Justice

2.18.5 Responsibilities

Registrar of Marriages, State counsel, marriage clerks, record management officers and Office administrative Assistants shall ensure that these procedures are adequately implemented and maintained. All staff within this department must follow and implement these procedures.

2.18.6 Key performance indicator

- Number of adoptions registered

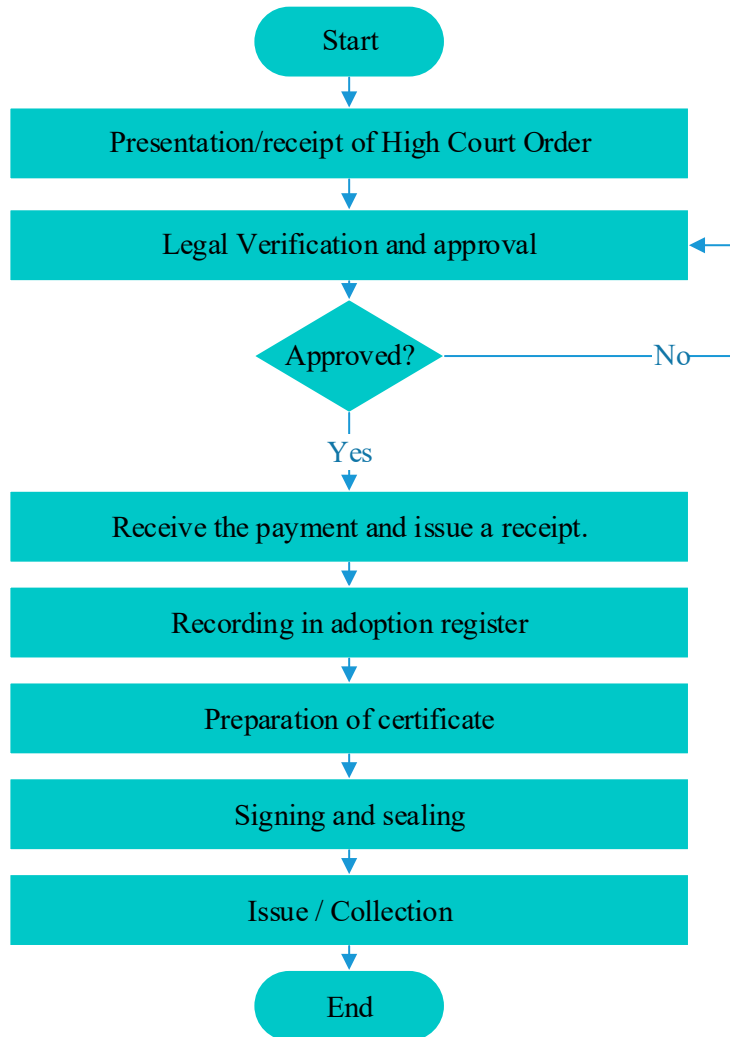
2.18.7 Resources

1. Finance
2. Infrastructure
3. Personnel

2.18.8 Procedure for Registrations of Adoptions

Step	Source of input	Activity	Conditions	Receiver Output
1.	Client	The client presents a High Court Adoption Order to the Clerk.	Must be aged between 25 and 65, Must be 21 years older than the child they wish to adopt, In case of a joint application, the couple must have been married to one another for at least three years, Single applicants (male or female) cannot adopt children of the opposite sex unless under special circumstances, A sole foreign female applicant can only adopt under special circumstances.	Clerk.
2.	Clerk.	Verification of the Court Order and approval the same for payment.		Client
3.	Client	Makes payment of the Requisite fees: Ksh. 100	Payment Completion	Client
4.	Clerk	Enters the particulars in an adoption register		Adoption clerk
5.	Adoption clerk	Generation of adoption certificate		Registrar General
6.	Registrar General	Signing and sealing of the certificate of Adoption.		Marriage clerk
7.	Marriage clerk	Issuance of the Certificate of Adoption.		Client

2.18.8.1 Flow Chart



Flowchart 12: Registrations of Adoptions

2.19 REGISTRATION OF DIVORCES

2.19.1 Purpose

The purpose of this procedure is to provide guidance on registration of Divorces

2.19.2 Scope

This procedure covers the process for registration of Divorces.

2.19.3 Reference

1. ISO 9001:2015 Standard
2. Quality Manual
3. Marriage Act No.4 of 2014

2.19.4 Terms (Definitions)

- HOD Head of Department
- ISO International Organization for Standardization

- OAG & DOJ Office of the Attorney General and Department of Justice

2.19.5 Responsibilities

Registrar of Marriages, State counsel, marriage clerks, record management officers and Office administrative Assistants shall ensure that these procedures are adequately implemented and maintained. All staff within this department must follow and implement these procedures.

2.19.6 Key performance indicator

- Number of divorces registered

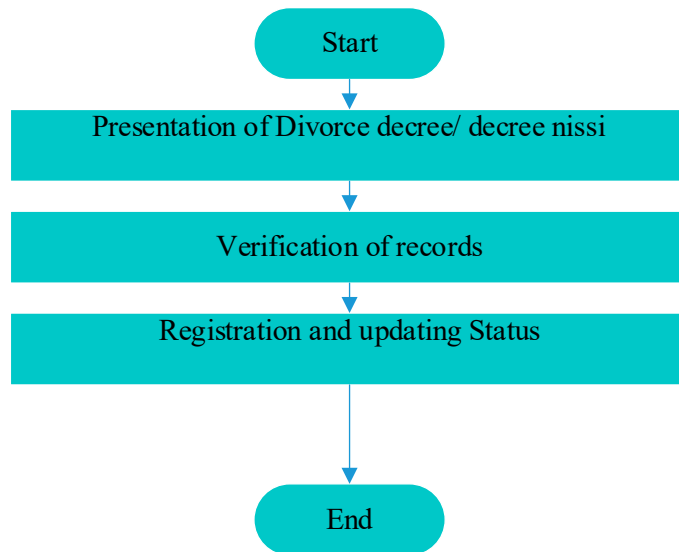
2.19.7 Resources

1. Finance
2. Infrastructure
3. Personnel

2.19.8 Procedure for Registrations of Divorces

Step	Source of input	Activity	Conditions	Receiver Output
1.	Client	The client presents a Divorce Decree or Decree Nissi		Counsel
2.	Counsel	Verification of the uploaded document and approval the for Registration	Divorce Decree/Decree Nissi must be verified by Judicial Service Commission	Clerk
3.	Marriage clerk	Registration of the divorce and updating status in the marriages database.		Client

2.19.8.1 Flow chart



Flowchart 13: Registration of Divorces

2.20 VERIFICATION OF MARRIAGE DOCUMENTS

2.20.1 Purpose

The purpose of this procedure is to provide guidance on verification of marriage documents.

2.20.2 Scope

This procedure covers the process for verification of marriage documents.

2.20.3 Reference

1. ISO 9001:2015 Standard
2. Quality Manual

2.20.4 Terms (Definitions)

- HOD Head of Department
- ISO International Organization for Standardization
- OAG & DOJ Office of the Attorney General and Department of Justice

2.20.5 Responsibilities

Registrar of Marriages, State counsel, marriage clerks, record management officers and Office administrative Assistants shall ensure that these procedures are adequately implemented and maintained. All staff within this department must follow and implement these procedures.

2.20.6 Key performance indicator

- Number of Verification Letters Issued.

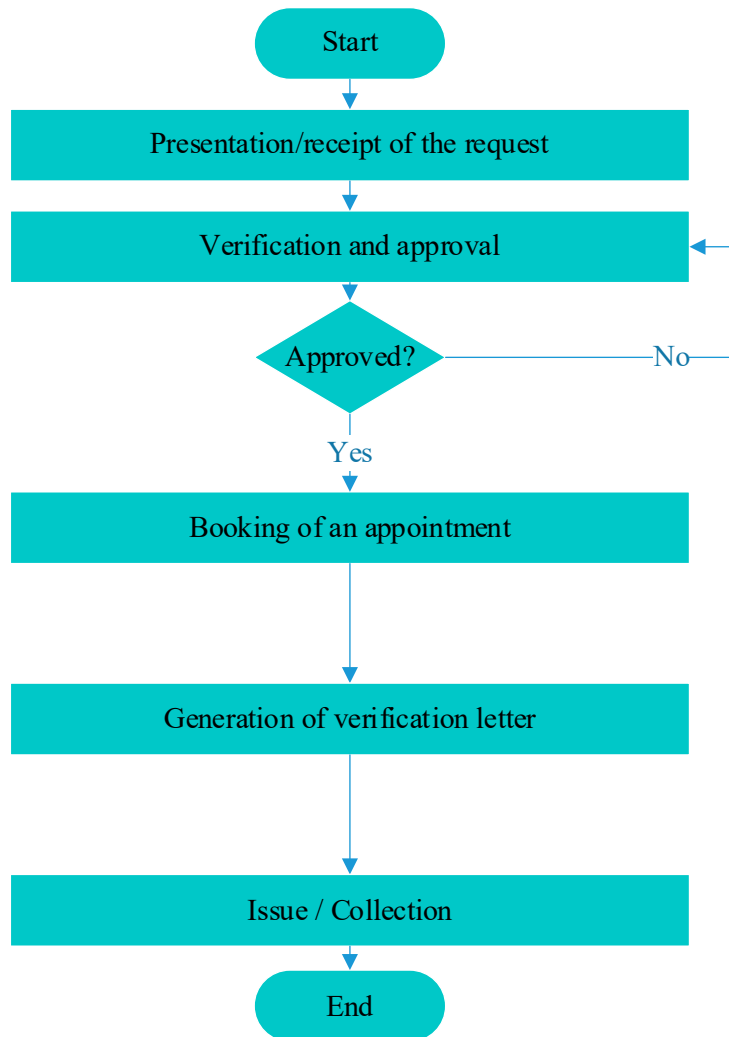
2.20.7 Finance Resources

1. Infrastructure
2. Personnel

2.20.8 Procedure for Verification of Marriage Documents

Step	Source of input	Activity	Conditions	Receiver Output
1.	Client	Applicant uploads soft copies of documents: Birth Certificates, Identification cards/ Passports, colored passport size photo, Death certificate {in case of widowed person}, Divorce Decree Absolute/Decree Nisi)		Clerk.
2.	Clerk.	Verification of the applicant's documents		Client
3.	Client	Booking of an appointment to collect the verification letter		Clerk
4.	Clerk	Generation and issuance of a Verification Letter		Client

2.20.8.1 Flow Chart



Flowchart 14: Verification of Marriage Documents

2.21 OBJECTIONS TO MARRIAGES

2.21.1 Purpose

The purpose of this procedure is to provide guidance on objection to Marriages

2.21.2 Scope

This procedure covers the process for objection to Marriages.

2.21.3 Reference

1. ISO 9001:2015 Standard
2. Quality Manual

3. Marriage Act No.4 of 2014

2.21.4 Terms (Definitions)

- HOD Head of Department
- ISO International Organization for Standardization
- OAG & DOJ Office of the Attorney General and Department of Justice

2.21.5 Responsibilities

Registrar of Marriages, State counsel, marriage clerks, record management officers and Office administrative Assistants shall ensure that these procedures are adequately implemented and maintained. All staff within this department must follow and implement these procedures.

2.21.6 Key performance indicator

- Number of objections registered

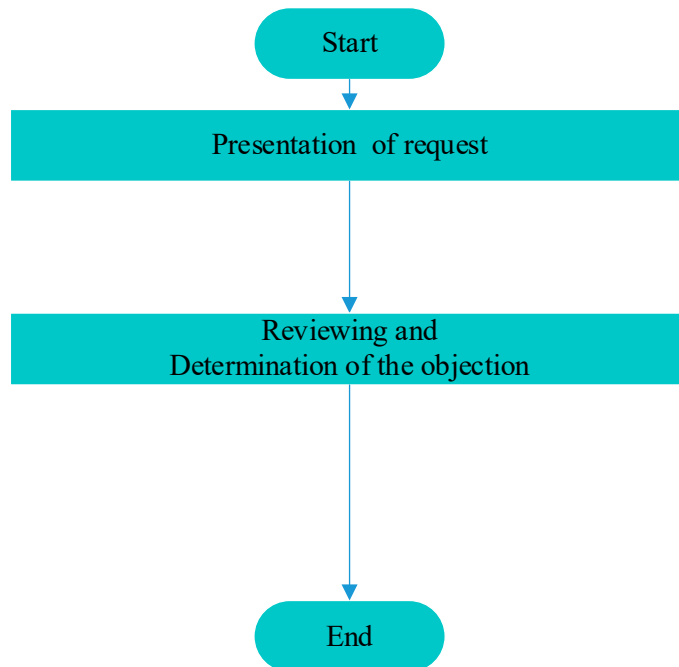
2.21.7 Resources

1. Finance
2. Infrastructure
3. Personnel

2.21.8 Procedure for Objections to Marriages

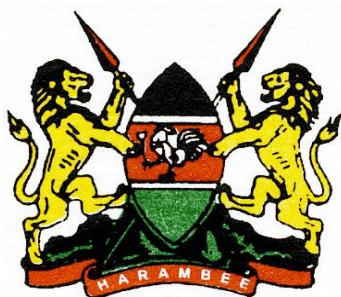
Step	Source of input	Activity	Conditions	Receiver Output
1	Client	Applicant uploads soft copies of documents: A written letter of objection and Proof of marriage		Counsel
2	Counsel	Reviewing and determination of the objection		Client

2.20.9 Flow chart



Flowchart 15: Objections to Marriages

ANNEX III: STANDARDS OPERATING PROCEDURES FOR CIVIL LITIGATION DEPARTMENT



REPUBLIC OF KENYA

**OFFICE OF THE ATTORNEY GENERAL
AND DEPARTMENT OF JUSTICE
CIVIL LITIGATION STANDARD
OPERATING PROCEDURE
FOR DIGITIZATION**

1.0 GENERAL

1.1 Purpose of the Procedure

The purpose of this Standard Operating Procedure (SOP) is to establish uniform procedures pertaining to the service, performance and the reporting of the Civil Litigation activities.

1.2 Scope of Application

This procedure is applicable to all sites/areas applicable and to all personnel involved in the Civil Litigation activities at OAG & DOJ

1.3 Responsibility for Implementation

HOD Civil Litigation is the overall in charge of implementing this procedure and SC/LC will be responsible for operation of the SOP

1.4 Definition of Terms and Abbreviations

- SOP Standard Operating Procedure.
- AIE Authority to Incur Expenditure
- SG Solicitor General
- SC/LC State Counsel/Litigation Counsel
- SS Support Staff

2.0 DOCUMENTS

2.1 Pleadings

INPUT	OUTPUT	COURT/TRIBUNAL DOCUMENTS
• Notice of Intention to Sue • Government Liability • Complaint • Memorandum of Claim • Amended Pleadings (Covers All Pleadings) • Petition • Request for Judgement in Default • Notice of Motion • Miscellaneous Applications	• Demand Letter • Complaint • Memorandum of Appearance • Notice of Appointment of Advocate • Defence • Reply to Petition • Reply to Memorandum of Claim • Reply to Defence • Counterclaim	• Judgement • Rulings • Orders • Decree • Certificate of Order Against Government • Certificate of Costs • Notice to Show Cause • Arbitral Award • Summons • Court Proceedings Typed

INPUT	OUTPUT	COURT/TRIBUNAL DOCUMENTS
• Originating Summons • Reference • Bill of Costs • Supreme Court • High Court/ Elc/Elrc • Chamber Summons • List of Issues • Pre-Trial Questionnaire • Reply to Defence • Notice of Appeal • Notice of Cross Appeal • Cross Appeal • Cross Petition • Arbitration Notice of Dispute • Arbitration Preliminary Hearing Notice • Arbitration Order for Directions • Statement of Claim • Record of Appeal • Memorandum of Appeal • Petition of Appeal • Memorandum of Claim • Tribunal Appeals • Submissions • Defence • Witness Statements • Case Digest • List of Documents • List of Authorities • Preliminary Objection • Bill of Costs • Defences • Counter Claims • Third Party Notices • Claim for Indemnity • Memorandum of Appearance • Notice of Appointment of Advocate • Notice of Change of Advocate • Case Conference Notes	• Claim Against Co-Defendants • Witness Statements • List of Documents • List of Witnesses • Preliminary Objections • Grounds of Opposition • Response to Reference • Applications • Notice of Motion • Miscellaneous Application Affidavits • Replying Affidavit • Supplementary Affidavit • Further Affidavit • Affidavit of Service • Submissions • Third Party Notices • List of Authorities • Case Digest • Plaintiff • Chamber Summons • Notice of Motion • Draft Consent (To Be Discussed)	

INPUT	OUTPUT	COURT/TRIBUNAL DOCUMENTS
• International Court Pleadings (All Courts Outside Kenya) • Notice of Withdrawal Affidavit • Further Affidavit • Replying Affidavit • Supplementary Affidavit • Affidavit of Service • Auctioneer Documents • Proclamation • Warrants of Attachment • Consent (To Be Discussed) • Other Documents (Specify)		

2.2 Court Date Notices

INPUT	OUTPUT
• Hearing Notice • Taxation Notice • Notice to Attend Judgment/ Ruling • Notice of Entry of Judgment • Mention Notice • Pre-Trial • Case Conference • Notice of Award • Notice To Show Cause	• Hearing Notice • Taxation Notice • Notice to Attend Judgment/ Ruling • Notice of Entry of Judgment • Mention Notice • Pre-Trial • Case Conference • Notice of Award • Notice To Show Cause

2.3 Correspondence

INPUT	OUTPUT

• Correspondence from a) Clients b) Ombudsman • Correspondence from Advocates • Correspondence from Court • General Correspondence	• Correspondence to Clients a) Advice to Clients b) Letters Informing MDAs on Court Decisions/Responding to Enquiries • Correspondence to Advocates • Correspondence to court • General Correspondence
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2.4 Internal Memo

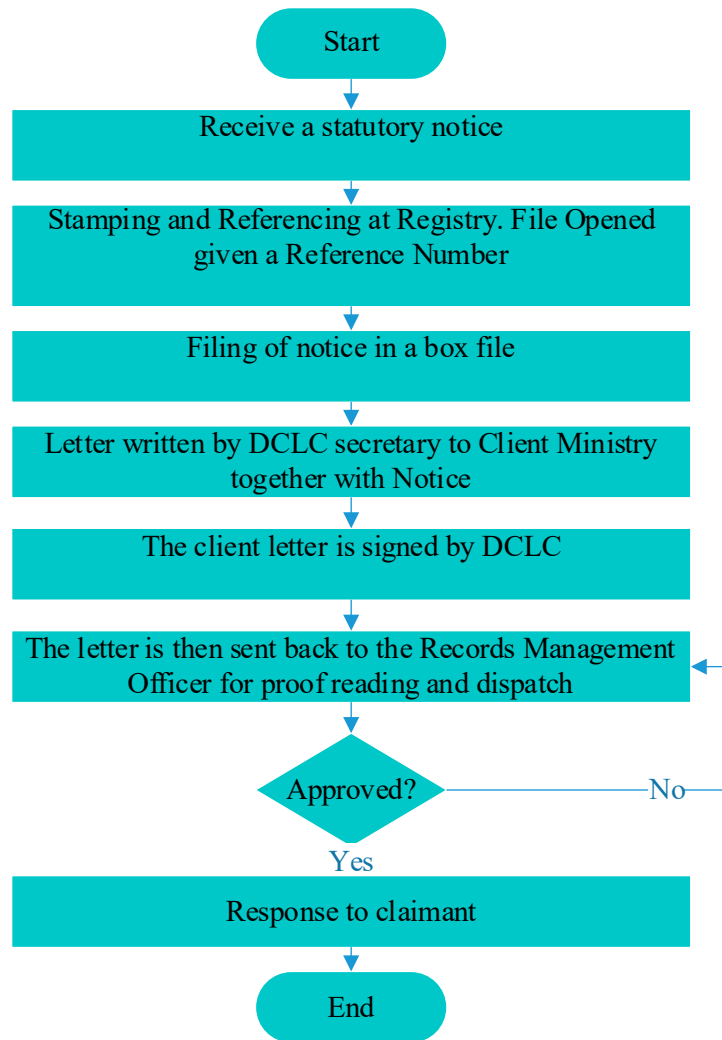
• File Transfer Memo a) Regional Transfer b) Sectional Transfer • File Closure • Court File Perusal to in Charge Registry • Request for Extraction of Court Documents
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3.0 LITIGATION WORK FLOW & PROCEDURES

3.1 Registry Division

3.1.1 Statutory Notices

a) Work Flow Chart



Flowchart 16: Statutory Notices

b) Procedure

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
1.	Claimant	Statutory notice	Service: The claimant shall present a statutory notice at the Civil Litigation registry.	Entry data	Officer in charge - Registry	Civil Litigation
2.	Civil Litigation	Statutory notice	Stamping and Referencing: The notice is stamped and date of receipt indicated.	Reference number	Officer in charge - Registry	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
			A reference number is then given.			
3.	Civil Litigation	Statutory notice	Filing: The notice is then placed in a box file together with other notices received in the course of the day.	Relevant register	Officer in charge - Registry	Civil Litigation
4.	Civil Litigation	Statutory notice	Correspondence: A letter is written to the client Ministry by the DCLC and typed by the secretary forwarding a copy of the Notice and seeking instructions. A copy of the said letter is copied to the claimant or his advocate.	Client communication	DCLC	Civil Litigation
5.	Civil Litigation	Draft letter	Signature: The letters to the Ministries are signed by the DCLC.	Client communication	DCLC	Civil Litigation
6.	Civil Litigation	correspondence	Proof Reading: The letters are then sent back to the Record's Management Officer for proof reading and dispatch.	Client communication	Officer in charge - Registry	Civil Litigation
7.	Ministry	Instructions	Response to Claimant: Upon receipt of instructions from the Ministry a	Letter to Claimant	SC/LC	Civil Litigation

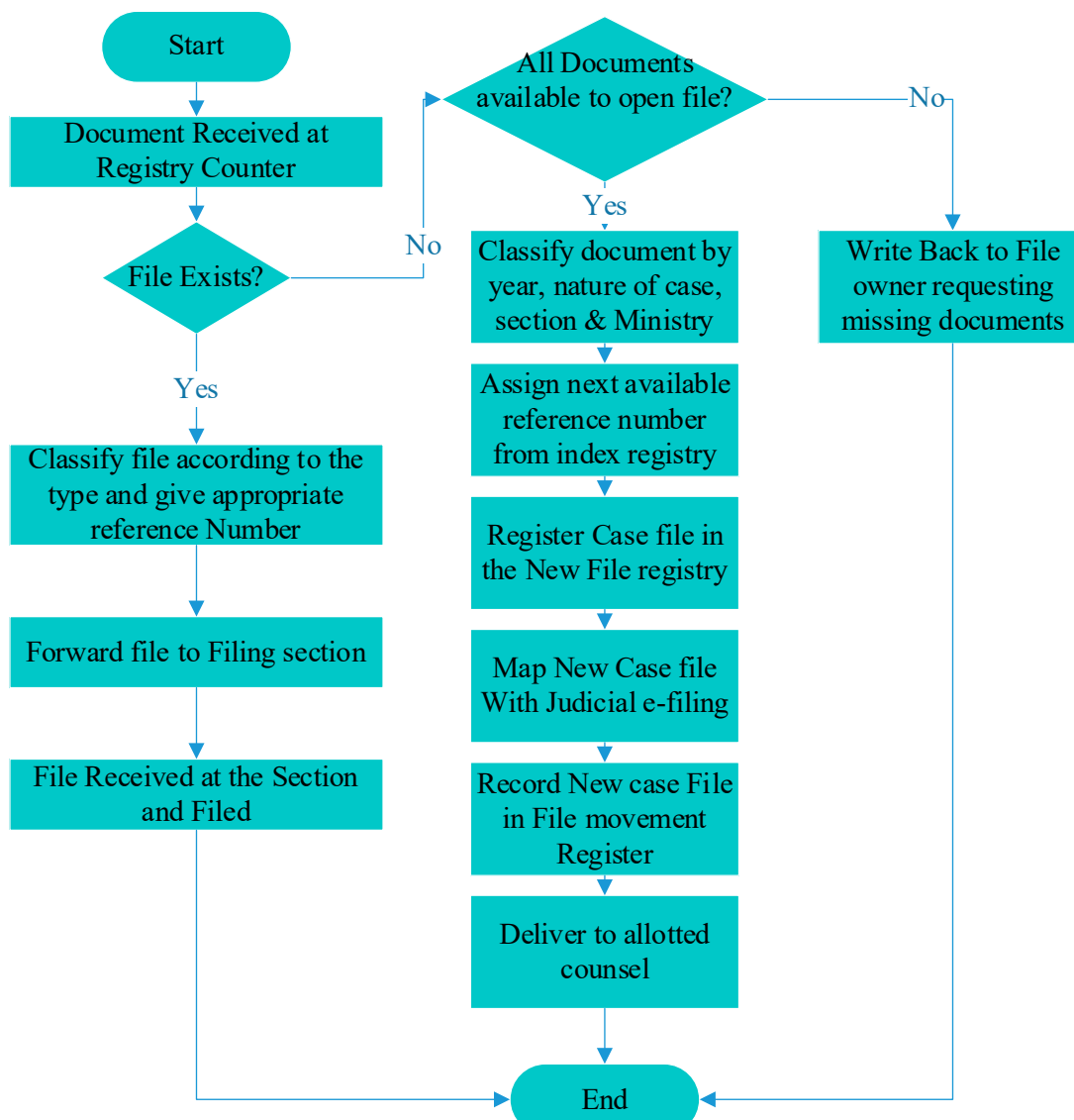
Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
			letter is written by counsel to the claimant or his advocate conveying the Ministry's instructions. The letter is typed by the secretary			

c) Retained Document Information

Notice of Intention to sue

3.1.2 Case File Opening

a) Work Flow Chart



Flowchart 17: Case File Opening

b) Procedure

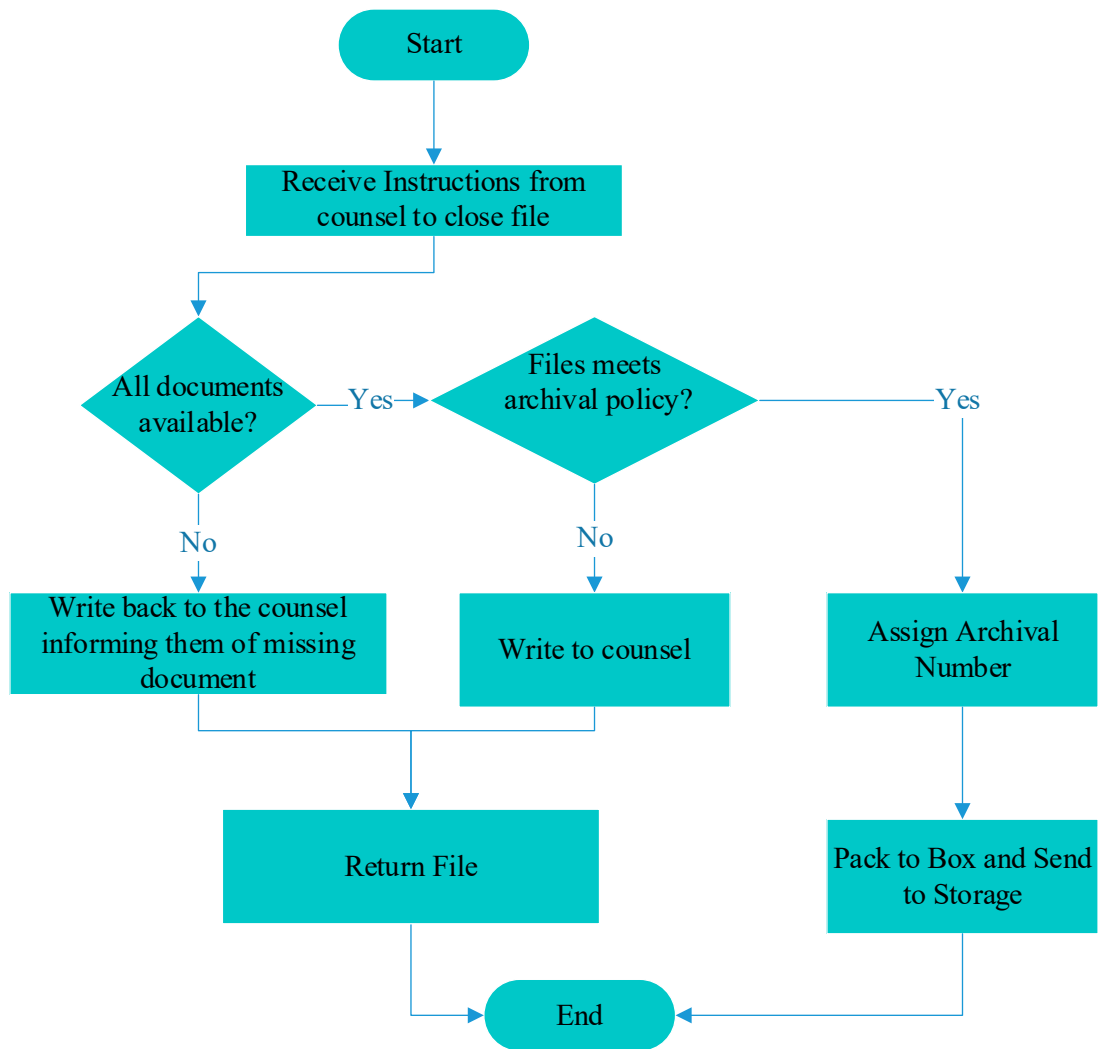
1. Input is received at the Civil Registry Counter.
2. Check whether Case File exists for the Input received
 - a) If Yes
 - i. Indicate AG File Reference No. on the received Document/ Pleading/ Correspondence/ Notice.
 - ii. Forward Document to Section concerned to facilitate filing
 - iii. Section concerned Retrieves Case File, Files the document, Folios and attention counsel dealing with the case File.

b) If No

- i. Check whether all prerequisite documents required to open a file are present.
- ii. Read through the document to determine the case year, nature of case, section and ministry concerned.
- iii. From the Index Register Check the next available reference number with regards to section/ Ministry/ case Year
- iv. Register Case File in New File Register
- v. Ensure New case file has been mapped with judiciary E-filing
- vi. Record New Case File in File Movement Register and Deliver to Allocating counsel

3.1.3 Case File Closure

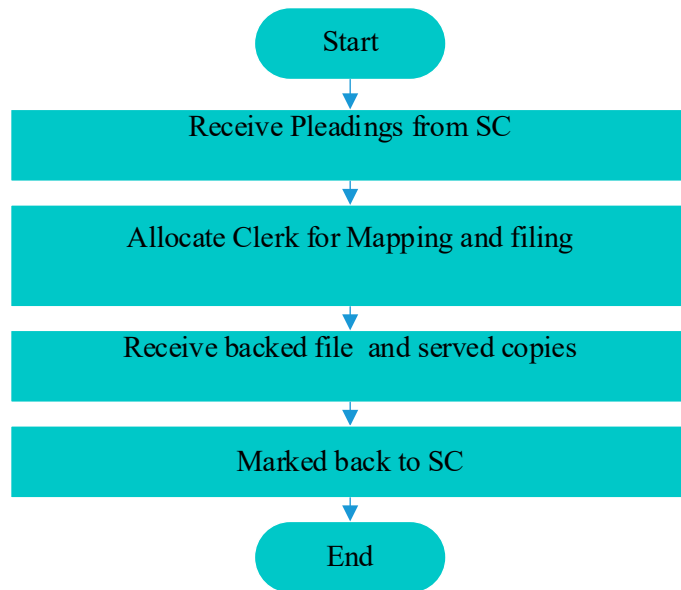
a) Work Flow Chart



Flowchart 18: Case File Closure

3.1.4 Filing and Service of Pleadings

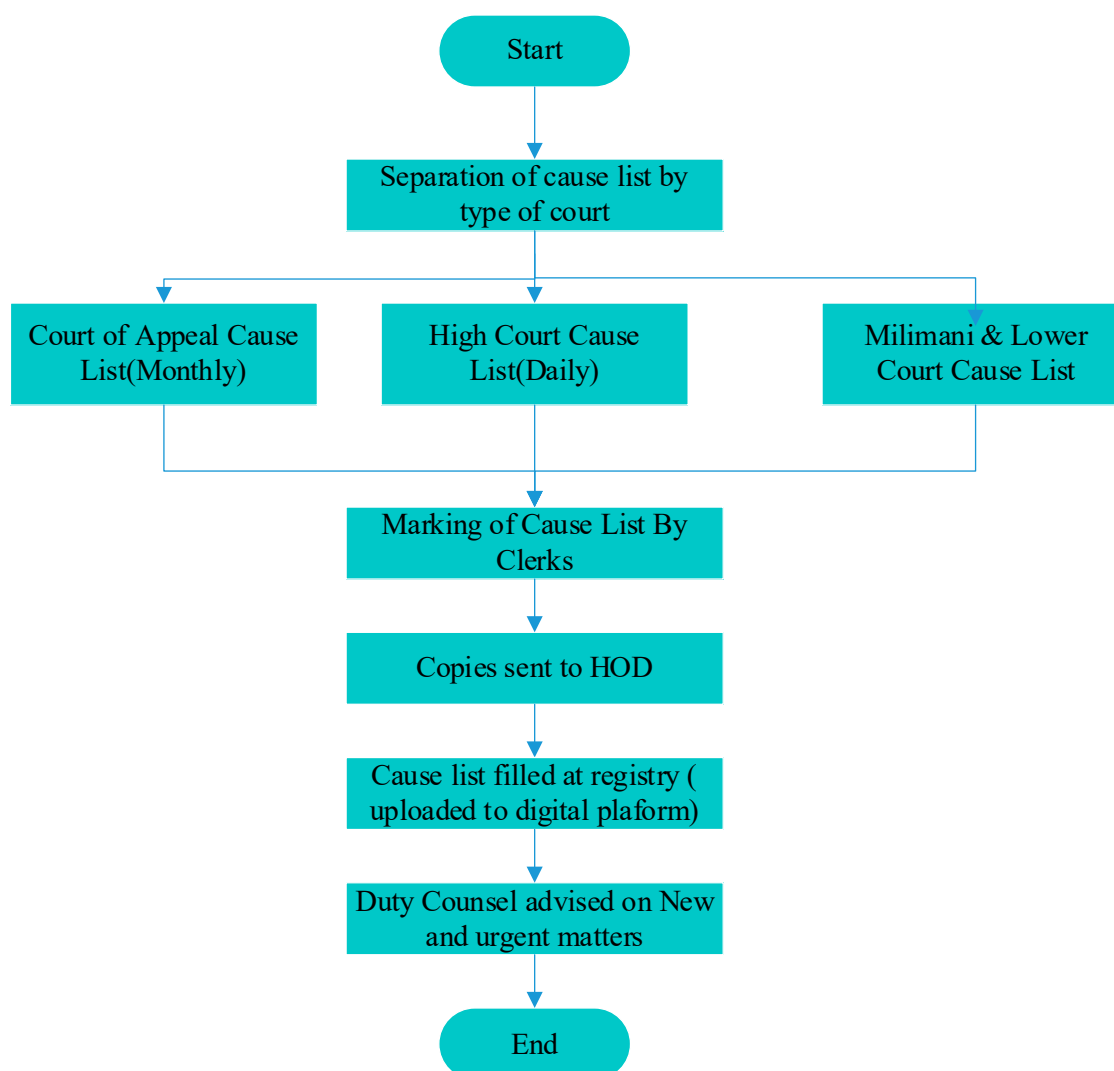
a) Work Flow Chart



Flowchart 19: Filing and Service of Pleadings

3.1.5 Cause List Marking

a) Work Flow Chart



Flowchart 20: Cause List Marking

a) Procedure

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
	Kenya Law Reports	Daily causelist	Collection of Cause List: The list shall be collected from the court registry by the court clerk as follows: Court of Appeal- Monthly High Court- daily	Causelist	Officer in charge - Registry	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
			Mililani Lower and High Court-daily			
	Civil Litigation	Causelist	Marking of Cause List: The cause lists are duly marked by the clerks in the registry and copies given to the Head of Department, SPLC and DC.	Marked causelist	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Marked causelist	Filing: A copy of the marked cause list is placed in a file in the registry. The marked Cause List is scanned and uploaded on the digitised platform	Relevant register	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Marked causelist	Informing Duty Counsel New and/ or Urgent Matters: The DC is informed of any matters which require his attention e.g., those that are yet to be allocated and those which arise when counsel is away.	copy of marked causelist to counsel dealing	SC/LC	Civil Litigation

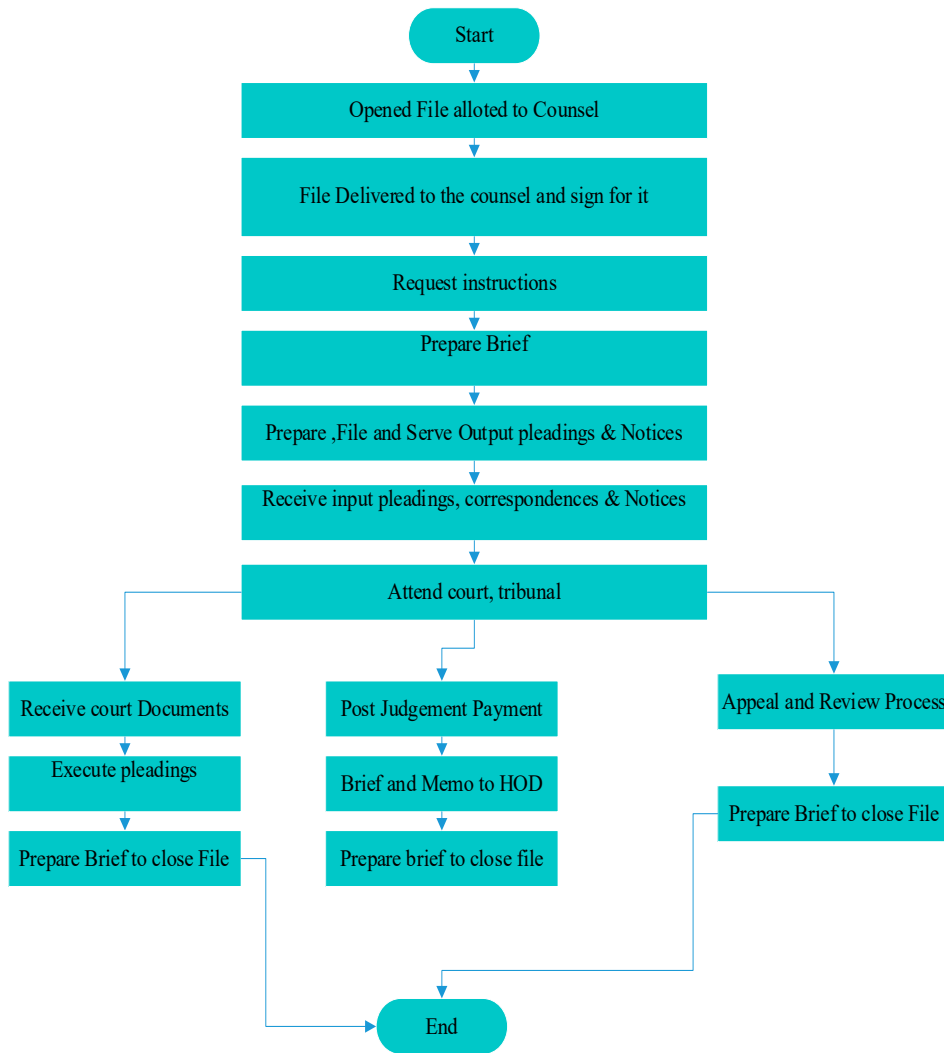
c) Retained Documented Information

Cause List

3.2 Counsel Division

3.2.1 Litigation Case Process

a) Work Flow Chart



Notes:

- corresp
ondence
with
clients,
court and
co-counsel
is a
continuous
process at
each step

Flowchart 21: Litigation Case Process

3.2.2 Judicial Review Applications and Constitutional Petitions

a) Work Flow Chart



Flowchart 22: Judicial Review Applications and Constitutional Petitions

b) Procedure

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
1.	Litigant	Petition	Service: The Applicant shall present copies of the Judicial Review Applications and Constitutional Petitions at the civil litigation registry.	Entry data	Officer in charge - Registry	Civil Litigation
2.	Civil Litigation	Pleadings	Stamping and Referencing: The Judicial Review Application or Constitutional	File reference No.	Officer in charge - Registry	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
			Petition shall be stamped and dated by the clerk. A reference number is then given.			
3.	Civil Litigation	Pleadings	Opening a File: A new file is opened and the details are recorded by the clerk.	Case file	Officer in charge - Registry	Civil Litigation
4.	Civil Litigation	Case file	Verification and Allocation: The File is then forwarded to the allocating SC/LC for verification and allocation of the file to a state counsel. The file is then given to the state counsel who acknowledges receipt by signing the file movements register.	File allocation sheet	DCLC	Civil Litigation
5.	Civil Litigation	Case file	Correspondence: A letter is then written to the client Ministry by the SC/LC informing them of the application/ petition and seeking instructions.	Client communication	SC/LC	Civil Litigation
6.	Civil Litigation	Case file	Notice of Appointment of Advocate, Preliminary Objection, Grounds of Opposition and/ or Replying Affidavit: The SC shall draw grounds of opposition and/ or replying affidavit, where appropriate.	Pleadings -Preliminary Objection -Grounds of Opposition -Replying Affidavit	SC/LC	Civil Litigation
	Civil Litigation	Pleadings	Signing and Commissioning of the Replying Affidavit:	Pleadings	SC/LC	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
			The SC shall forward the affidavit for signature by the designated officer and thereafter ensure that the affidavit is commissioned.			
	Civil Litigation	Pleadings	Filing and serving of Notice of Appointment of Advocate, Preliminary Objection, Grounds of Opposition and Replying Affidavit: The SC will forward the grounds of opposition and replying affidavit for filing in court by the court clerk. Upon filing, the court clerk will serve the pleadings upon the applicant's advocate or the applicant himself.	Pleadings	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Case file	Drawing, Filing and Serving of Skeleton Arguments and List of Authorities: The state counsel shall draw any pleadings or authorities which the court may direct parties to comply with. He shall then forward the pleadings to the court	Skeleton Arguments, Written Submissions and List of Authorities	SC/LC	Civil Litigation

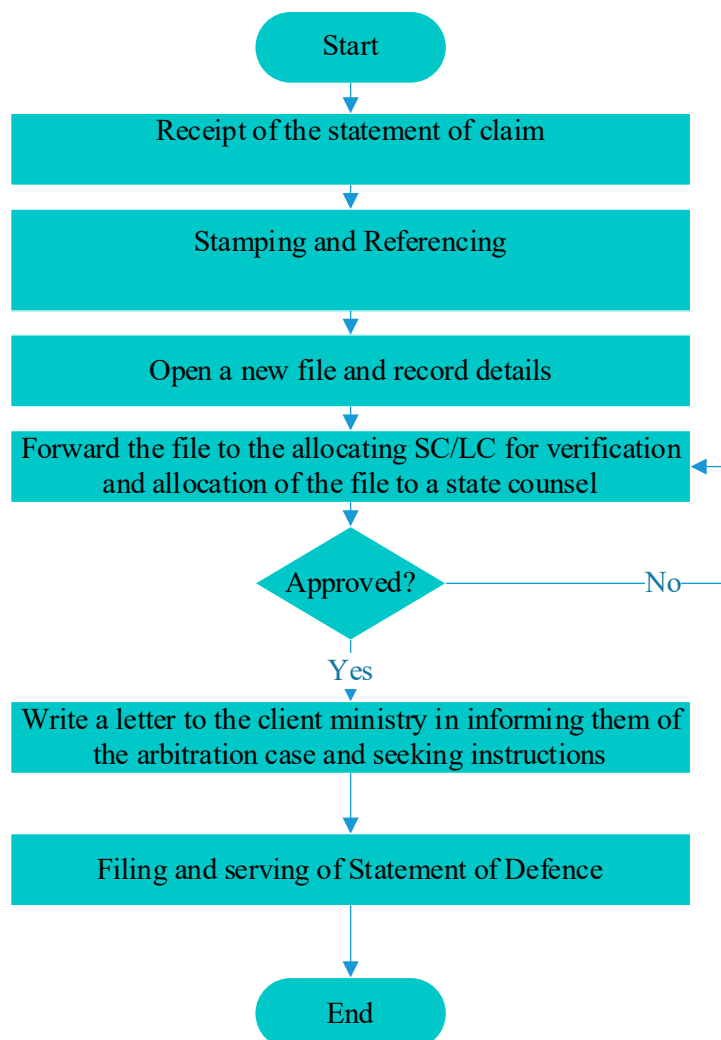
Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
			clerk for filing and service.			

c) Retained Documented Information

All Inputs

3.2.3 Arbitration

a) Work Flow Chart



Flowchart 23: Arbitration Process

b) Procedure

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
1	Claimant	Notice	Service: The Claimant shall present a Notice of Dispute	Entry data	Officer in charge - Registry	Civil Litigation
2	Civil Litigation	Case File	Opening a File: A new file is opened and the details are recorded by the clerk.	Case file	Officer in charge - Registry	Civil Litigation
3	Civil Litigation	Case File	Verification and allocation: The File is then forwarded to the SDSG/SDCLC for verification and allocation of the file to a SC. The file is then given to the SC who acknowledges receipt by signing the file movement register.	File allocation sheet	DCLC	Civil Litigation
4	Claimant/ Claimant and Respondent	Arbitrator	Service: The Claimant or the Claimant and the Respondent appoint an arbitrator/arbitrator	Entry data	Officer in charge - Registry	Civil Litigation
5	Civil Litigation	Attendance	Attendance: The SC attends Preliminary Hearing called by the Arbitrator	Attendance	SC/LC	Civil Litigation
6	Civil Litigation	Pleadings	Service: The claimant shall present copies of the Statement of Claim at the civil litigation registry.	Entry data	Officer in charge - Registry	Civil Litigation
7	Civil Litigation	Pleadings	Stamping and Referencing: The Statement shall be stamped and dated by the clerk. A reference number is then given.	File reference No.	Officer in charge - Registry	Civil Litigation
8	Civil Litigation	Case file	Correspondence: A letter is then written to the client Ministry by the SC informing them of the arbitration case and seeking instructions.	Client communication	SC/LC	Civil Litigation

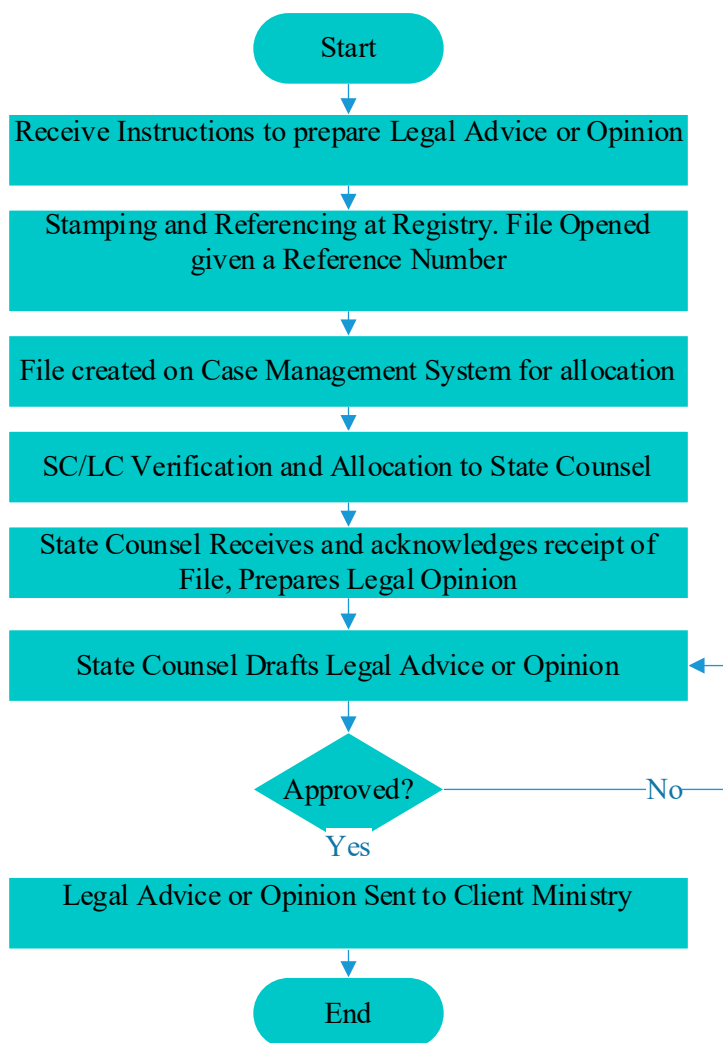
Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
9	Civil Litigation	Case file	Defence: The SC draws a response and it is then typed by the secretary.	Pleadings	SC/LC	Civil Litigation
10	Civil Litigation	Pleadings	Filing and Serving of Defence: The SC will forward the response for filing before the arbitrator. Upon filing, the court clerk will serve the Defence upon the claimant's advocate or the claimant himself.	Pleadings	Officer in charge - Registry	Civil Litigation
11	Civil Litigation	Pleadings	Service: The Arbitrator shall publish his award for the parties.	Entry data	SC/LC	Civil Litigation
12	Civil Litigation	Pleadings	Application: The SC draws an application to enforce the Award OR	Pleadings	SC/LC	Civil Litigation
13	Civil Litigation	Pleadings	The SC draws an application to set aside the Award	Pleadings	SC/LC	Civil Litigation
14	Civil Litigation	Pleadings	Filing and Serving of Defence: The SC will forward the Application for filing before the High Court. Upon filing, the court clerk will serve the Application upon the claimant's advocate or the claimant himself.	Pleadings	SC/LC	Civil Litigation

c) Retained Documented Information

- Draft legal opinion
- Correspondence
- Input Documents 2.0 above

3.2.4 Legal Advice

a) Work Flow Chart



Flowchart 24: Offering Legal Advice and Preparation of legal Opinion

b) Procedure

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
1.	Ministries	Instructions	Receiving of Instructions: The Ministries shall present a letter at the civil litigation registry or it shall be delivered by post.	Entry into register	Officer in charge - Registry	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
2.	Civil Litigation	Instructions	Stamping and Referencing: The pleadings are stamped and date of receipt indicated. A reference number is then given	File reference number	Officer in charge - Registry	Civil Litigation
3.	Civil Litigation	Case file	Case management: A case file once opened, is presented to the allocating SC/LC for verification and allocation of the matter to a state counsel. The file is then given to the state counsel who acknowledges receipt by signing the file movement register.	Case file	DCLC	Civil Litigation
4.	Civil Litigation	Instructions	Instructions: Request/instructions are marked to the HOD.	Directions to SC/LC dealing	HOD	Civil Litigation
5.	Civil Litigation	Instructions	Legal Opinion: The SC/LC undertakes research where necessary and may call for further instructions and documentation, if need be and proceed to draft a legal opinion.	Draft legal opinion	SC/LC	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
6.	Civil Litigation	Draft legal opinion	Verification and approval: The draft legal opinion is forwarded to the HOD for his comments who then forwards to the SG for approval. Verification Stages? Head of Section HOD/ SG AG	Legal opinion	SC/LC	Civil Litigation
7.	Civil Litigation	Legal opinion	Correspondence: The SC/LC shall then send the legal opinion to the client ministry. The letter will have been typed by the secretary.	correspondence	SC/LC	Civil Litigation

c) Retained Documented Information

All Input in 2.0

3.2.5 Legal Opinions

1. Allocation of a file is done by the allocating counsel.
2. The allocated counsel identifies whether a matter is of great public interest, great financial implication and/ or affects the public policy.
3. State Counsel also seeks instructions from the client.
4. State counsel prepares the brief and forwards it to the SG through the HOD for approval.
5. Once approved, the legal brief/opinion is then forwarded to the Attorney General through the Solicitor General for consideration and advice.

3.2.3.1 Legal Opinions on request by the client Ministry

1. Receive a request by the client requesting for a legal opinion.

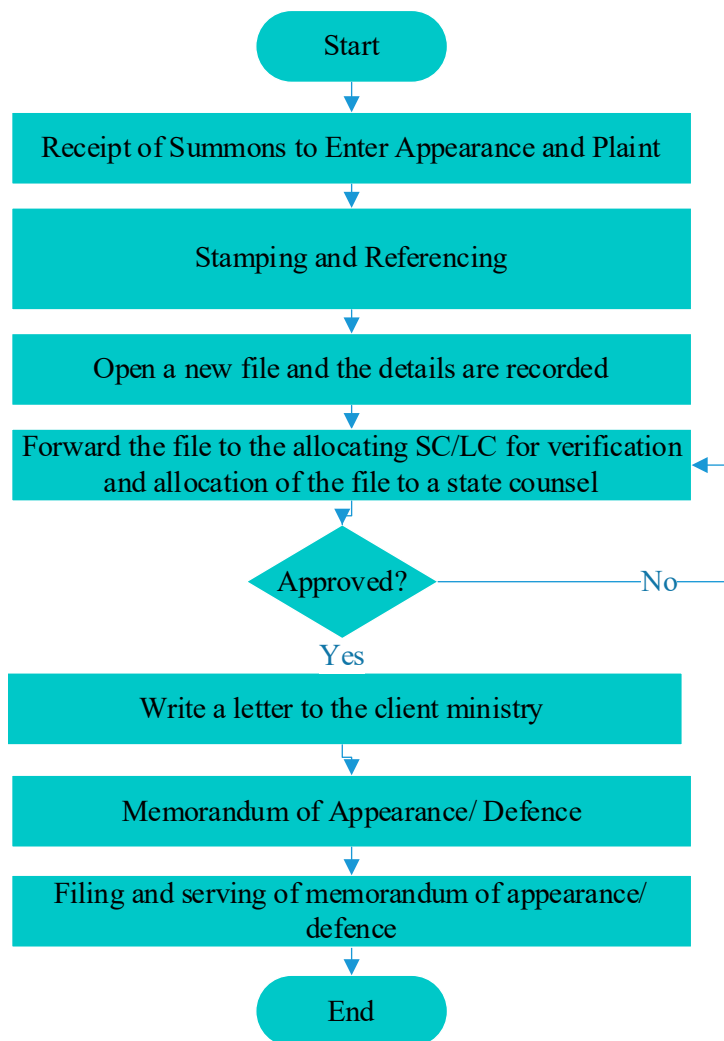
2. Allocation by the HOD to State Counsel.
3. The file is opened by the registry.
4. The State Counsel also seeks instructions from the client.
5. State Counsel prepares the brief and forwards it to the SG through the HOD for approval.
6. Once approved, the legal brief/opinion is then forwarded to the Attorney General through the Solicitor General for consideration and advice.

3.2.3.2 Legal Opinions Documents

1. Letter requesting for the legal opinion.
2. The Opinion/Brief.
3. Letter to the Ministry.

3.2.6 Summons and Defences

a) Work Flow Chart



Flowchart 25: Summons and Defences Process

b) Procedure

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
1.	Litigants	Pleadings	Service: The plaintiff shall present copies of the Summons to Enter Appearance and Plaintiff at the civil litigation registry.	Entry data	Officer in charge - Registry	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
2.	Civil Litigation	Pleadings	Stamping and Referencing: The Summons to Enter Appearance and Complaint shall be stamped and dated by the clerk. A reference number is then given.	File reference No.	Officer in charge - Registry	Civil Litigation
3.	Civil Litigation	Pleadings	Opening a File: A new file is opened and the details are recorded by the clerk. If the plaintiff had served the Attorney General with a Statutory Notice, then the summons and complaint are filed together with the notice.	Case file	Officer in charge - Registry	Civil Litigation
4.	Civil Litigation	Case file	Verification and Allocation: The File is then forwarded to the allocating SC/LC for verification and allocation of the file to a state counsel. Subsequently the case file is forwarded to the allocated SC who acknowledges receipt by signing the file movement register.	File allocation sheet	DCLC	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
5.	Civil Litigation	Case file	Correspondence: A letter is written to the client Ministry by the SC informing them of the suit and seeking instructions. The letter will then be typed by the secretary.	Client communication	SC/LC	Civil Litigation
6.	Civil Litigation	Case file	Defence: The SC draws the memorandum of appearance together with the statement of defence and other replies which are typed by the secretary is drawn and returned to the registry for filing and service by a clerk.	-Pleadings -Statement of Defence -Notice of Claim against Co-Defendants -Preliminary Objection List of witnesses -Witness Statements -List of Documents	SC/LC	Civil Litigation
7.	Civil Litigation	Pleadings	Filing and Serving of Defence: The SC will forward both the Appearance and Defence for filing in court by the court clerk. Upon filing, the court clerk will serve the Appearance and Defence upon the plaintiff's	Pleadings	Officer in charge - Registry	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
			advocate or the plaintiff himself			

b) Retained Documented Information

All Pleadings Input 2.0

3.2.7 Pleadings and Correspondences

a) Work Flow Chart



Flowchart 26: Pleadings and Correspondences

b) Procedure

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
	Litigants & MDAs	Pleadings, notices & correspondence	Service: All correspondence and pleadings shall be received at the civil litigation registry.	Entry data	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Pleadings, notices & correspondence	Stamping and Referencing: The pleadings or correspondence shall be stamped and dated by the clerk.	Pleadings, notices & correspondence	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Pleadings, notices & correspondence	Open of File: If it is a new matter, a file is opened and the details are recorded by the clerk. The file is then forwarded to the SDCLC for allocation. On the other hand, if the documents relate to an existing matter the clerk will file the documents in the appropriate folder.	File reference No./ File folio No.	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Pleadings, notices & correspondence	Diarising in the Main Diary: Hearing and mention notices and applications with dates are filed in their respective files. The matters are diarized in the main diary and the files are then forwarded to counsel who	Entry data	Officer in charge - Registry	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
			acknowledge receipt by signing the movement register.			
	Civil Litigation	Pleadings, notices & correspondence	Diarising by State Counsel: The SC will diarise matters in their respective diaries.	Entry data	SC/LC	Civil Litigation
	Civil Litigation	Pleadings, notices & correspondence	Correspondence: A letter is then written to the client Ministry by the SC, and typed by the secretary, informing them of the hearing dates.	Client communication	SC/LC	Civil Litigation
	Civil Litigation	Pleadings, notices & correspondence	Grounds of Opposition and/ or Replying Affidavit: The SC shall draw grounds of opposition and/ or replying affidavits, where appropriate. The secretary will type pleadings.	Pleadings	SC/LC	Civil Litigation
	Civil Litigation	Pleadings,	Signing and Commissioning of the Replying Affidavit: The SC shall forward the affidavit for signature by the designated officer and thereafter ensure that the affidavit is commissioned.	Pleadings	SC/LC	Civil Litigation

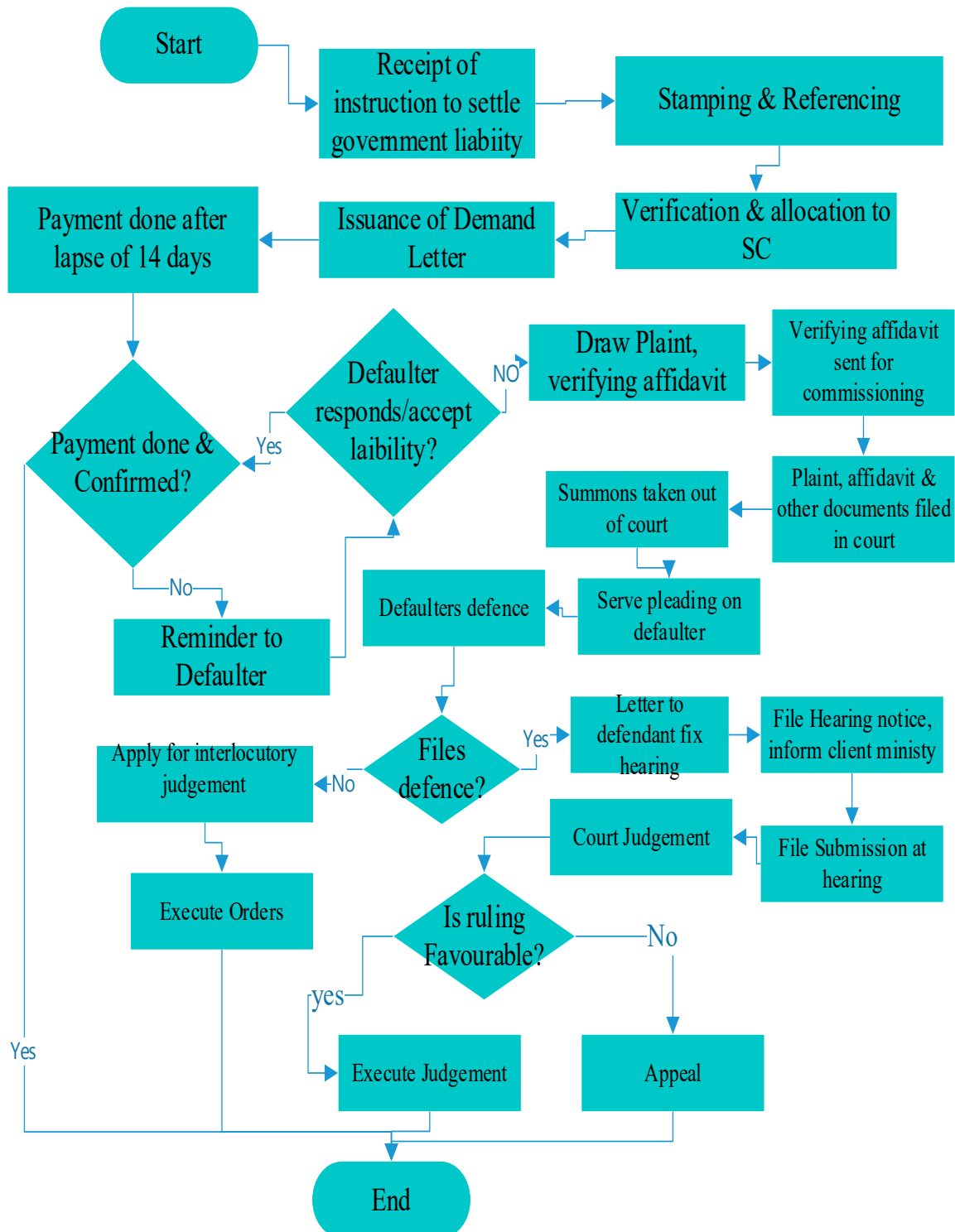
Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
	Civil Litigation	Pleadings,	Filling and Serving of Grounds of Opposition and Replying Affidavit: The SC will forward the grounds of opposition and replying affidavit for filing in court by the court clerk. Upon filing, the court clerk will serve the pleadings upon the applicant's advocate or the applicant himself.	Pleadings	SC/LC	Civil Litigation
	Civil Litigation	Case file	Drawing, filing and serving of skeleton arguments and list of Authorities: The SC shall draw any pleadings or authorities which the court may direct parties to comply with. The secretary will type the documents. The SC shall then forward the pleadings to the court clerk for filing and service.	Skeleton Arguments and List of Authorities	SC/LC	Civil Litigation

c) Retained Documented Information

All input 2.0

3.2.8 Government Liability

a) Work Flow Chart



Flowchart 27: Government Liability

b) Procedure

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
	Ministries	Instructions	Instructions: The Attorney General receives instructions from Client Ministries to demand settlement of government liability from defaulters.	Instructions	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Instructions	Stamping and Referencing: The correspondence shall be stamped and dated by the clerk. A reference number is then given.	File reference No.	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Instructions	Filing: A new file is opened and the details are recorded by the clerk.	Case file	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Case file	Verification and Allocation: The File is then forwarded to the allocating SC/LC for verification and allocation of the file to a state counsel. Subsequently the case file is forwarded to the allocated SC who acknowledges receipt by signing the file movement register.	File allocation sheet	DCLC	Civil Litigation
	Civil Litigation	Case file	Issuing of a Demand Letter: A demand letter is then written to the defaulter by the SC demanding that they settle the	Demand letter	SC/LC	Civil Litigation

			government liability within fourteen (14) days failure to which a suit will be instituted against him.			
	Civil Litigation	Demand letter	Reminder: At the lapse of fourteen days, another reminder is issued to the defaulter. Any response will then be communicated to the Ministry.	Reminder	SC/LC	Civil Litigation
	Civil Litigation	Instructions	Plaint and Verifying Affidavit: The SC draws a plaint and verifying affidavit if the defaulter either fails to respond or denies liability.	Pleadings	SC/LC	Civil Litigation
	Civil Litigation	Pleadings	Signing and Commissioning of the Verifying Affidavit: The verifying affidavit is sent to the designated officer for signing and then taken for commissioning.	Pleadings	SC/LC	Civil Litigation
	Civil Litigation	Pleadings	Filing and Serving of Plaint and Verifying Affidavit, Application: The SC will forward the Plaint, verifying affidavit and other documents for filing in court by the court clerk.	Suit:- Plaint Application	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Pleadings	Summons to Enter Appearance: Summons taken out at the court by the clerk.	Summons	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Pleadings	Serving of Summons, Plaint and Verifying Affidavit: Upon filing,	Pleadings	Officer in charge - Registry	Civil Litigation

			the court clerk will serve the pleadings upon the defaulter's advocate or the defaulter himself. The summons will require the defaulter to enter appearance within 15 (fifteen) days.			
	Civil Litigation	Case file	Request for Judgement: If the defaulter fails to file defence within the time set, the SC shall apply for interlocutory judgment and commence the execution process.	Default judgment	SC/LC	Civil Litigation
	Defendant	Pleadings	Receiving of Memorandum of Appearance, Defence, Replying Affidavit, Grounds of Opposition and Preliminary Objection: If the defaulter files a defence then the SC may file a reply to defence.	Pleadings	Officer in charge - Registry	Civil Litigation
	Civil Litigation	Civil Procedure Rules	Fixing of a Hearing Date: When pleadings are closed the SC shall instruct the clerk to write a letter to the defendant's advocate inviting them to fix a hearing date at the court registry.	Invitation for fixing dates	SC/LC	Civil Litigation
	Civil Litigation	Fixing of dates	Filing and Serving of Hearing Notice: The court clerk shall file and serve the hearing notice on the defendant and thereafter draw, file	Notice/affidavit of service	Officer in charge - Registry	Civil Litigation

			and serve an affidavit of service on the defendant.			
	Civil Litigation	Hearing Notice	Letter to the Client Ministry: The SC shall inform the client ministry of the hearing date and prepare for hearing.	Client communication	SC/LC	Civil Litigation
	Civil Litigation	Case file	Attending Court: The SC shall proceed with the hearing and present his witnesses before court. He shall also cross-examine the defendant's witnesses.	Proceedings	SC/LC	Civil Litigation
	Civil Litigation	Case file	Filing Submissions: After the matter has been concluded the SC shall research and file submissions.	Written submissions	SC/LC	Civil Litigation
	Civil Litigation	Case file	Attending Court for Judgment: The SC shall attend court for the reading of the judgment.	Judgment	SC/LC	Civil Litigation
	Court	Judgment	Informing Client of Judgment: Within seven days of receiving judgment the SC shall inform the client ministry.	Client communication	SC/LC	Civil Litigation
	Court	Judgment	Commencing the Execution Process: Where the decision has been favourable to the plaintiff then the SC shall demand settlement of the decretal sum and failure to which the counsel shall apply for orders of execution.	Decree/execution	SC/LC	Civil Litigation
	Court	Judgment	Appeal: If aggrieved with the judgement	Notice of Appeal	SC/LC	Civil Litigation

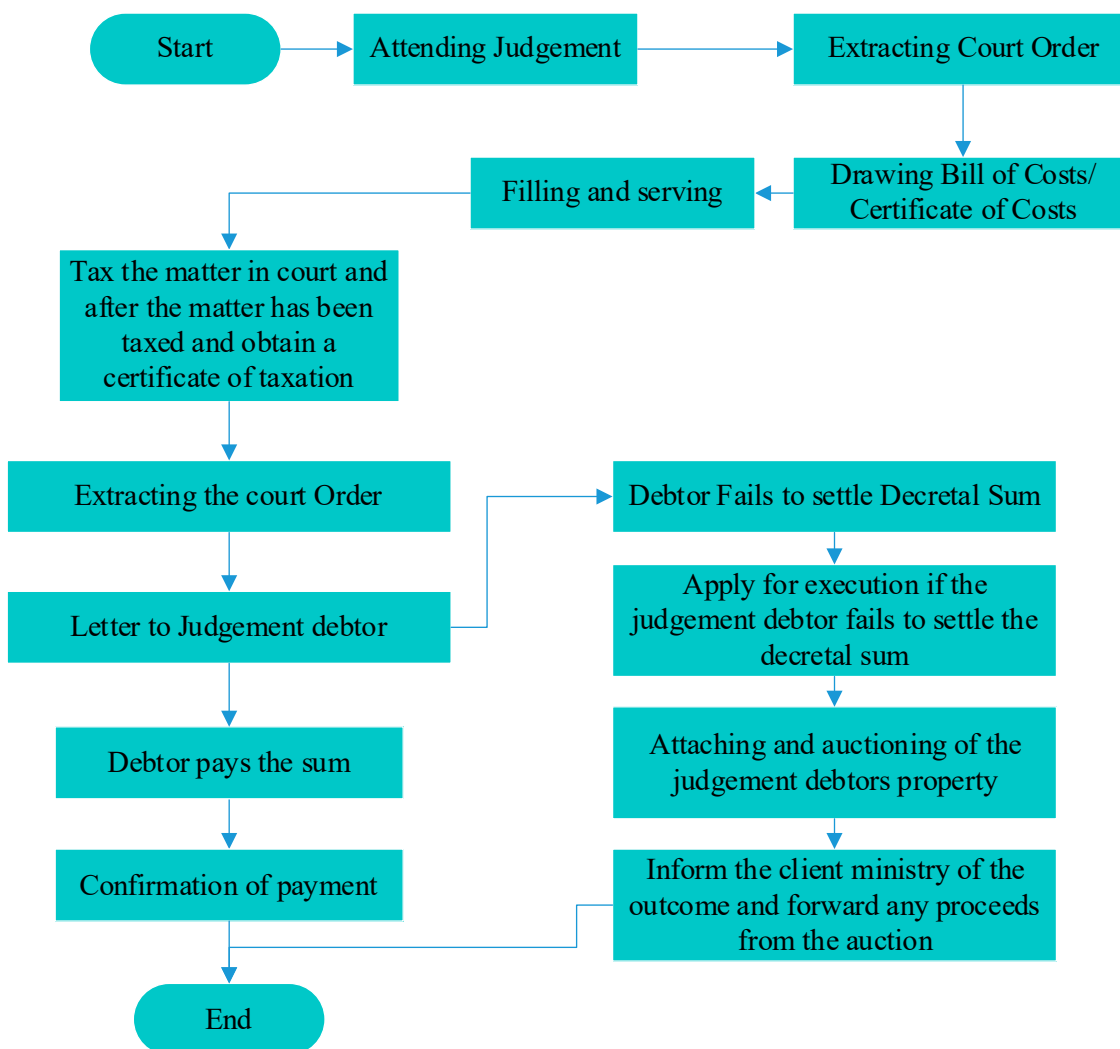
			the state counsel shall appeal against the decision.			
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c) Retained Documented Information

- Correspondence
- Demand Letter
- Plaintiff

3.2.9 Taxation and The Execution Process

a) Flowchart



Flowchart 28: Taxation and The Execution Process

c) Retained Documented Information

- a. Bill of Costs
- b. Response to Bill of Costs
- c. Decree
- d. Certificate of Costs

b) Procedure

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
	Court	Concluded case	Attending Judgement/Ruling: The SC shall attend the judgment/Ruling.	Judgment/Ruling	SC/LC	Civil Litigation
	Court	Judgment	Extracting Court Order: Thereafter, the SC, with the assistance of the court clerk shall extract the court order.	Court order/Decree	SC/LC	Civil Litigation
	Civil Litigation	Case file	Drawing Bill of Costs/ Certificate of Costs: The SC shall draw a bill of costs if the matter is in the high court. If the matter is in the lower court, the SC shall request for and the court clerk shall obtain a certificate of costs from the courts. Typing is done by the secretary. In cases where the other party has filed a bill of costs, SC shall file Submissions in response to the bill of costs	Bill of costs/ Submissions to the Bill of Costs	SC/LC	Civil Litigation
	Civil Litigation	Bill of Costs	Filing and Serving: The court clerk shall file and serve the bill of costs together with a Notice of taxation which he shall obtain from the courts upon the other party.	Notice of Taxation	SC/LC	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
	Civil Litigation	Case file	Attending Taxation: The SC shall tax the matter in court and after the matter has been taxed, he shall obtain a certificate of taxation.	Certificate of taxation	SC/LC	Civil Litigation
	Civil Litigation	Decision of taxing master	Extracting Court Order: The clerk shall extract the court order.	Order	SC/LC	Civil Litigation
	Civil Litigation	Order	Letter to Judgement Debtor: A letter is then written by the state counsel to the judgement debtor seeking settlement of the full amount. The letter is typed by the secretary.	Demand letter	SC/LC	Civil Litigation
	Civil Litigation	Certificate of costs	Applying for Execution: The SC shall apply for execution if the judgment debtor fails to settle the decretal sum.	Execution proceedings	SC/LC	Civil Litigation
	Court	Execution	Attaching and Auctioning of the Judgment Debtor's Property: A court bailiff shall aid in the process.	Proclamation	SC/LC	Civil Litigation
	Civil Litigation	Execution	Letter to Client Ministry: The SC shall inform the client ministry of the outcome and forward any proceeds from the auction. The letter is typed by the secretary.	Client communication	SC/LC	Civil Litigation

3.3.10 Post Judgment - Payment Process

1. Judgment is delivered and the following documents are served at our office by the Decree Holder:
 - a) Certified Copy of the Judgment
 - b) Certificate of Order against Government
 - c) Certificate of Costs

- d) Decree
- 2. MEMO by Counsel to Litigation Accountant requesting Calculations of Decretal amount payable.
- 3. CALCULATION of interest and the total amount payable are done by the Litigation Accountant.
- 4. Counsel handling the matter prepares a payment brief for approval by the Solicitor General through the HOD.
- 5. Counsel also prepares a draft letter of advice requesting for settlement funds for the Solicitor General's signature.
- 6. The Solicitor General signs the letter which is sent to the respective Ministry together with documents mentioned in (1) above.
- 7. The file is stored at the registry.
- 8. Receive letter from the Ministry informing that fund have been deposited in the OAG Deposit account.
- 9. The letter is received at the Solicitor General's Office and marked to the HOD Civil Litigation Department for processing of payment.
- 10. Bank Statement is obtained by a Litigation Accountant from the Accounts Department confirming the deposit of funds into the OAG Deposit account.
- 11. The Litigation Accountant issues a receipt to the respective Ministry.
- 12. Litigation Accountant requests for the file from Registry for purposes of the payment process.
- 13. The HOD, Civil Litigation Department prepares a letter to the Advocate/Decree Holder requesting the following documents: -
 - a) Filled Electronic Funds Transfer Details Form.
 - b) Signed Discharge Voucher
 - c) Tax Compliance Certificate
 - d) KRA PIN Certificates
 - e) Copy of the Identification Card
 - f) If the Decree Holder is a Company, A Certificate of Registration
 - g) Registration of the Law Firm on IFMIS
 - h) Letter from Advocate advising on the mode of payment (whether split payment between Advocate and Client)

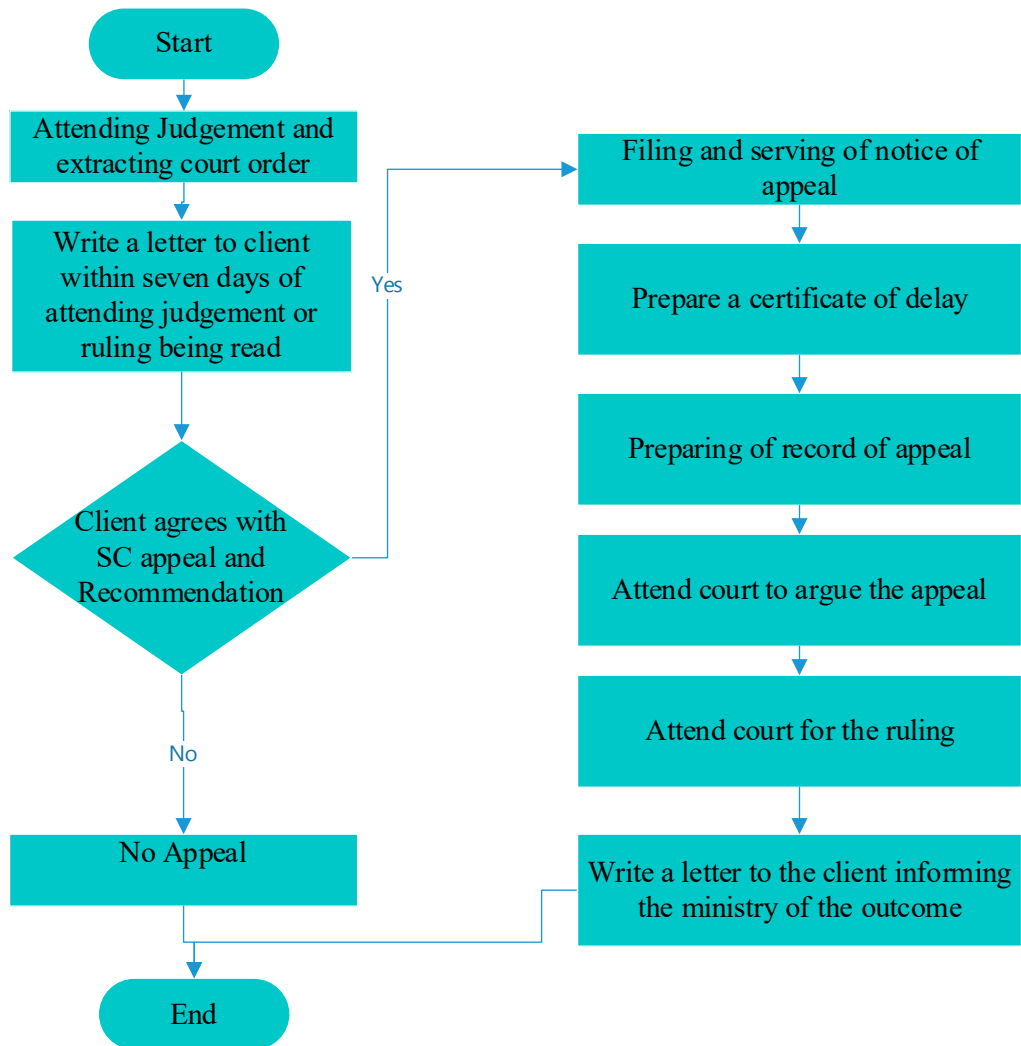
14. Receipt of the documents in (13) (a) to (h).
15. Once the above has been complied with, a payment voucher is prepared by the Litigation Accountant.
16. The file is allocated to a Counsel to prepare a Case Summary to the Solicitor General.
17. The voucher is taken to the Accounts Department for examination.
18. The examined voucher is forwarded to the Civil Litigation Department.
19. The file is allocated to another Counsel who prepares a Payment Memo to the Solicitor General.
20. The HOD Civil Litigation forwards the Case Summary, the Brief and the examined Voucher to the Solicitor General.
21. The Solicitor General approves the Voucher.
22. The litigation accountant receives the approved voucher and forwards it to the accounts Department for processing and wiring the funds to the account provided by the Advocate/Decree Holder.
23. Copy of Bank Statement confirming payment is obtained by the litigation accountant.
24. The Statement is put in the file.
25. The file is closed.
26. File returned to the Registry for closure.

b) Documents Involved

1. Certified Copy of the Judgment
2. Certificate of Order against Government
3. Certificate of Costs
4. Decree
5. Payment Brief
6. Letter to the relevant Ministry requesting for funds
7. Letter from the Ministry providing funds
8. Bank Statement
9. Letter to the Advocate/Decree Holder requesting for particulars
10. Electronic Funds Transfer Details Form.
11. Discharge Voucher
12. Tax Compliance Certificate
13. Copy of Identification Card
14. Certificate of Registration (for companies)
15. Payment Voucher
16. Case Summary
17. Payment Memo

3.3.1 Appeals

a) Work Flow Chart



Flowchart 29: Appeals Process

b) Procedure

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
	Civil Litigation	Judgment	Court Order: The SC shall attend the judgment and thereafter extract a court order. Draft will be done by SC and typing will be done by secretary.	Court order	SC/LC	Civil Litigation
	Civil Litigation	Judgment	Letter to Client Ministry: The SC shall write a letter to the client within seven days of attending the judgment or ruling being read. Further he shall seek instructions on whether to appeal or not and in doing so he shall advise them on the best way forward. Typing of the documents shall be done by the secretary.	Client communication	SC/LC	Civil litigation
	Ministry	Instructions	Filing and Serving of Notice of Appeal: The court clerk shall file and serve the Notice of Appeal together with a letter requesting for typed proceedings within 14 (fourteen) days.	Appeal Case file	SC/LC	Civil Litigation
	Civil Litigation	Notice of Appeal	Preparing a Certificate of Delay: In case of delay the SC shall prepare a certificate of delay and it shall be typed by the secretary.	Certificate of delay	SC/LC	Civil Litigation
	Civil Litigation	(Original Case file) Trial proceedings and documentation	Preparing of the Record of Appeal: The SC shall prepare the record of appeal and serve it within the stipulated time. Typing shall be done by the secretary	Record of Appeal	SC./LC	Civil Litigation
	Civil Litigation	Record of Appeal	Filing and Serving of the Record of Appeal: The court clerk shall file and serve the record of appeal.	Record of Appeal Submission, Case	Officer in charge - Registry	Civil Litigation

Step	Source of input	Input	Activity	Output	Responsibility	Receiver Output
			In cases where the other party appeals, SC shall file Submissions, Case Digest and List of Authorities	Digest and List of Authorities		
	Civil Litigation	Appeal case file	Attending the Appeal: The SC shall attend court to argue the appeal.	proceedings	SC/LC	Civil Litigation
	Civil Litigation	Appeal case file	Attending the Ruling: The SC shall attend court for the ruling	Judgment	SC/LC	Civil Litigation
	Civil Litigation	Judgement	Letter to Client: A letter is then written by the SC to the client informing the ministry of the outcome. The letter will be typed by the secretary.	Client communication	SC/LC	Civil Litigation